

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

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1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to ‘include everyone, regardless of circumstance, context or background’. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration)

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](http://uis.unesco.org)

- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: **Republic of Serbia**

Organization or entity responsible for the preparation of the report: **Ministry of Education**

Name of contact person: Jelena Nikolic

Email and telephone number of contact person: jelena.nikolic@mpn.gov.rs, +381 11 3631380

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☐ **Yes**

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

▪ Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

/

☐ No, not considering ratification. Please explain why:

/

- Is the Convention directly applicable in your country's domestic law?

☒ **Yes** ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

☐ Yes:

Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

Other than the Ministry of Education, the following independent bodies in the Republic of Serbia deal with the issues concerning infringements of the right to education: Serbian Ombudsman and the Commissioner for Protection of Equality.

The Commissioner for Protection of Equality, in accordance with the Law on Non-Discrimination, provides information and objective and independent advice to the citizens concerning exercising of the rights and protection from discrimination, acts upon citizens' discrimination-related complaints, provides opinions and recommendations in concrete cases and imposes specific measures.

The Ombudsman is an independent and autonomous state authority tasked with the protection and furthering respect for freedoms and rights. The immunity enjoyed by the Ombudsman enables him/her to be independent and autonomous in his/her work. Among the fields falling within the scope of Ombudsman's competence is the rights of the child. The Ombudsman controls, by checking the statements made in complaints or alternatively by acting of his/her own motion, whether the state administration authorities, Republic State Attorney, authorities and organisations exercising public authorisations vis-à-vis the citizens are acting in compliance with the laws and regulations of the Republic of Serbia and/or in accordance with the principles of good governance.

In the field of higher education, the Law on Whistleblower Protection, which was passed in 2014, is also of special importance as it concerns the actions of the state authorities in the cases of whistleblowing, which is defined as disclosing of information on breaches of regulations, infringements of human rights, exercising of public powers contrary to the purposes for which these powers were conferred, threats to life, public health, security, the environment, as well as to prevent damage of a large scale.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☐ **Yes**

☐ No

- If yes, please provide reference:

In the reporting period of 2021/24, the Ministry of Education was improving the legal framework in the field of prevention and protection from violence. Amendments to the laws and by-laws have been adopted, on which the Ministry of Education worked intensively over the past period, with the aim of improving the procedures to be followed in the field of protection from violence (the Law on Fundamentals of Educational System was adopted in the beginning of November 2023, while the following Rulebooks: the Rulebook on the protocol for action in institutions as the response to violence, abuse and neglect, and the Rulebook on community service and/or humanitarian work in educational institutions were adopted in February 2024). By means of the amendments to the legal procedure, procedures were made more stringent, and the time limits for completing the disciplinary procedure for pupils and students were shortened. With regard to the by-laws, in addition to the clarifications of certain procedures for action in situations involving violence and crises events, focus has been shifted to planning and realisation of preventive activities, community service and/or humanitarian work with pupils and students, with the inclusion of parents. By the amendment of the Rulebook on community service and/or humanitarian work in educational institutions, the obligation for the staff employed in the schools to organize community service and/or humanitarian work with the aim of preventing the risk behaviours of the pupils and students and developing empathy and cooperation has been prescribed for the first time. Realisation of the activities of community service and humanitarian work now has primarily a preventive role, as a part of the prevention of violence and school ethos, and not only a role in the realisation of intensified efforts on pupils'/students' upbringing. An integral part of the Rulebook is the Annex comprising the proposed activities for the community service and humanitarian work.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☐ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

☐ **In pre-primary education (including early learning and care)**

☐ **In primary education**

☐ **In secondary education**

☐ **In technical and vocational education and training**

☐ **In higher education**

☐ **In adult education and alternative learning**

- Please indicate the relevant legal provisions:

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

Anti-discriminatory and affirmative legislation in the field of education

The Ministry of Education pay special attention to the prevention of discrimination in the system of education and upbringing. Violence, abuse and neglect are prohibited under the **Law on Fundamentals of System of Education and Upbringing – the LFSEU** (*Official Gazette of the RS*, No. 88/17, 27/18 (other law), 27/18 (other law), 10/19, 6/20, 129/21, 92/23) in educational institutions (Article 110); violence, abuse and neglect are prohibited (Article 111); behaviours whereby reputation, honour and dignity of the children/pupils/students, employees and parents are damaged are prohibited. In cases of breaches of Articles relating to prohibition, the institutions are obliged to act by following the prescribed procedure - https://www.paragraf.rs/propisi/zakon_o_osnovama_sistema_obrazovanja_i_vaspitanja.html.

Legal regulation is continuously improved in that field, by intensifying the relevant efforts since 2016, when the **Rulebook on more detailed criteria for identification forms of discrimination by staff members, children, pupils/students or third person in educational institutions** was passed - <http://www.pravno-informacioni-sistem.rs/SlGlasnikPortal/eli/rep/sgrs/ministarstva/pravilnik/2016/22/1/reg>, and then also in 2018 when the **Rulebook on actions in institutions in cases of suspected or determined discriminatory conduct and insults to personal reputation, honour or dignity** - <https://www.pravno-informacioni-sistem.rs/SlGlasnikPortal/eli/rep/sgrs/ministarstva/pravilnik/2018/65/2/reg>.

The elements for identification of discriminatory behaviour and the procedures for actions for the educational institutions in cases of suspected or determined discriminatory conduct among pupils/students, students and staff members, among the staff members, parents and other adults are regulated quite precisely by both the Rulebooks. In addition to that, both the Rulebooks have brought the definition of discrimination which is in conformity with the Convention against Discrimination in Education from 1960:

“Discrimination and/or discriminatory behaviour, within the meaning of the Law and this Act, shall mean the conduct having the purpose of either directly or indirectly, openly or covertly, unjustifiably making distinction or impairing equality in treatment and/or omitting to act (exclusion, limitation or preference), in relation to a person or a group of persons, as well as members of their families or the persons close to them, which is based on race, colour of the skin, ancestors, citizenship, status of a migrant and/or displaced person, nationality or ethnic origin, language, religious or political convictions, sex, gender identity, sexual orientation, financial standing, social and cultural origin, birth, genetical characteristics, health condition, intellectual impairments and disability, marital and family status, conviction, age, appearance, membership in political, union and other organisations and other actual and/or presumed personal characteristics, as well as on other bases laid down by the law prescribing non-discrimination.”

In addition to that, according to the LFSEU, the nationals of the Republic of Serbia shall be equal in exercising the right to education; persons with disabilities shall have the right to education and upbringing whereby their educational needs and needs for upbringing shall be taken into account, by stressing the individual and/or group additional support in teaching and learning. The foreign nationals, as well as the stateless persons and the persons who are citizenship seekers shall have the right to education and upbringing under the same conditions and in the manner prescribed for the nationals of the Republic of Serbia. According to Article 4 of that Law, 1) upbringing and education of children in the year immediately preceding the beginning of their schooling; 2) the primary education and upbringing of pupils and adults; as well as 3) the secondary education of full-time and part-time students shall be provided free of any charge, under equal conditions. The Law further on provides for equality and availability of exercising of the right to education and upbringing based on social justice and the principle of equal opportunities without discrimination, respect for human rights and the rights of each child, pupil/student and adult and respect of human dignity; education and upbringing in democratically organized and socially responsible institutions in which openness, cooperation, tolerance, awareness of cultural and civilisational connections in the world, dedication to basic ethical values, the values of justice, truth, solidarity, freedom, honesty and responsibility are fostered and in which full respect of the rights of the child, pupils/students and adults are ensured. Democracy through inclusion of all the pupils/students in the system of education and upbringing is also among the tasks of the schools. Among the objectives of education and upbringing (Article 8), provision of stimulating and safe environments for integral development of a child, pupil/student and adult is included, along with the development of non-violent conduct and the zero tolerance to violence, development of awareness of the importance of sustainable development, protection and conservation of nature and the environment and ecological ethics, protection and wellbeing of animals, development of positive human values, development of the sense of solidarity, understanding and constructive cooperation with others and nurturing companionship and friendship, development of competences for understanding and respecting the children’s rights, human rights, civil freedoms and capabilities for life in a democratically organized and just society, development and respect of the racial, national, cultural, language, religious, gender, sexual and age-related equality, tolerance and respect of diversity. The key competences for the life-long learning are (Article 11): the social and civic competences, while among the general interdisciplinary competences (Article 12) is the responsible participation in democratic society. The rights of the child and of the pupils/students (Article 79) shall be exercised through respect for the personality, protection from discrimination, violence, abuse and neglect, information on rights and obligations, protection and

fair treatment of the child and of the pupil/student by the institution. In addition to that, the Law defines prohibition of discrimination (Article 110): "Discrimination and discriminatory behaviour, having the purpose of making any unjustifiable distinction or providing unequal treatment and/or omission to act (exclusion, restriction or preferential treatment) in relation to a person or groups of persons, as well as in relation to the members of their families or persons who are close to them, either directly or indirectly, in an open or covert manner, which is based on race, colour of the skin, ancestors, citizenship, migrant and/or displaced person's status, nationality or ethnic origin, language, religious or political convictions, sex, gender identity, sexual orientation, financial standing, social and cultural origin, birth, genetic characteristics, health condition, developmental impairments and disabilities, marital and family status, criminal record, age, appearance, membership in political, union and other organisations and other actual and/or presumed personal characteristics, as well as on other bases, laid down by the law prescribing non-discrimination and shall be prohibited in institutions". The special measures introduced to achieve full equality, protection and progress of persons and/or groups of persons in an unequal position shall not be considered discrimination. The institutions shall be obliged to take all the measures prescribed by that Law in cases of suspected or determined discriminatory behaviour in the institution." Article 112 prohibits any behaviour having the purpose of insulting the reputation, honour or dignity. In addition to that, the LFSEU defines the support measures for the inclusion of children in the educational system and increasing the coverage by education. For example, Article 136 of the LFSEU prescribes that the pedagogical assistants shall provide assistance and additional support to the groups of children and pupils in institutions, in accordance with their needs, and assistance to the staff members with the aim of improving their work. In their work, the pedagogical assistants shall realise cooperation with parents and/or with other legal representatives, authorities of the local self-government units, competent institutions, organisations and associations. The andragogical assistants shall provide support to adults aimed at their inclusion in the system of education, as well as assistance to the staff members in the realisation of educational programs. In their work, the andragogical assistants shall realise cooperation with the authorities of the local self-government units, competent institutions, organisations and associations. With the aim of providing clear definitions of the roles of the pedagogical and andragogical assistants, the ME has passed the Rulebook on pedagogical and andragogical assistants (Official Gazette of the RS, number 87/19), which has regulated the job description, the professional qualifications/education, additional knowledge/examinations/professional experience of pedagogical assistants. The most important effects of the support measures taken are reflected in the increased coverage of the Roma children and pupils/students and of the children and pupils/students with developmental impairments and disabilities by the system of education and upbringing, in the reduced dropping out and early leaving of school. In particular, an increase is observable of the number of students who are enrolled in and who are completing the secondary schools. The Law on Preschool Upbringing and Education (Official Gazette of the RS, No. 18/10, 101/17, 113/17, 10/19, 129/21), among the principles, includes the availability: of the equal right to and availability of all the forms of preschool upbringing and education, without any discrimination or exclusion based on sex, social, cultural, ethnic, religious or other affiliation, place of domicile and/or residence, financial standing or health condition, difficulties and impairments in development and disabilities or on any other bases, the democracy: respect for the needs and rights of the child and of the family, including the right to respect of opinion, active participation, decision-making and undertaking of responsibility. Article 14 defines that a child who is a foreign national and a stateless child and a child who is a citizenship seeker, a child from a vulnerable group without proof of residence or other personal identification documents, a refugee or a displaced person shall be enrolled in a preschool institution and/or in a school, which realizes the preparatory preschool program, under the same conditions and in the same manner as that prescribed for the nationals of the Republic of Serbia. That Law additionally defines support to children from vulnerable social groups (in Article 34) which shall be provided by the preschool institution that shall ensure removal of any physical obstacles and obstacles in communication, and/or provide adjustments and adaptation to the child who, due to social deprivation, developmental impairments, disability and other reasons, needs additional support in upbringing and education through production, passing and realisation of an individual educational plan (IEP1). In Article 4 of the Law on Primary Education and Upbringing (Official Gazette of the RS, No. 55/13, 101/17, 27/18, 10/19, 129/21, 129/21, 92/23), the right to primary education and upbringing is defined as the right of each person to free of charge and quality primary education and upbringing in public schools. Pupils of public schools may use, free of charge, the books, the school materials, transportation, meals, as well as accommodation, where necessary. The task of the school (Article 9) shall be to enable quality education and upbringing for each child and pupil, under the same conditions, irrespective of where the school is located, and/or where the education and upbringing are provided. The persons who are providing education and upbringing, as well as other persons employed with the school, shall in particular promote equality among all the pupils and shall actively oppose all types of discrimination and violence. Among the objectives of the primary education and upbringing (Article 21) are provision of stimulating and safe environment for integrated development of pupils, development of non-violent behaviour and introduction of zero tolerance to violence, development of awareness of the importance of sustainable development, protection and conservation of nature and the environment and ecological ethics, protection and wellbeing of animals, developing the sense of solidarity, understanding and constructive cooperation with others and nurturing companionship and friendship, developing positive human values, developing competences for understanding and respecting children's rights, human rights, civil freedoms and capabilities for life in a democratically organized and fair society, development and respect for the racial, national, cultural,

language, religious, gender, sexual and age-related equality, tolerance and respect for diversity, developing interculturality, respect and preservation of national and world cultural heritage. In addition to the above, that Law prescribes that (Article 41) the Program of protection from violence, abuse and neglect, the program for the prevention of discrimination and the prevention programs for other forms of risk behaviours shall be integral parts of the school curriculum, and that they shall be realized through various curricular and extracurricular activities with the pupils, staff members and the parents. According to Article 55 of that Law, the children from vulnerable social groups can be enrolled in schools without proof of residence or other necessary documentation, upon provision of proof of a completed medical examination for the child. The Law on Secondary Education and Upbringing (Official Gazette of the RS, No. 55/13, 101/17, 27/18, 6/20, 52/21, 129/21, 129/21, 92/23), in Article 2, defines the objectives and the general outcomes of secondary education and upbringing through the development of key competences required for further education and active citizen's role for the life in modern society, respect of the racial, national, cultural, language, religious, gender, sexual and age-related equality, tolerance and respect for diversity. The interdisciplinary competences, the outcomes of which need to be achieved on the basic level at the end of the secondary education, shall be: the competences for life-long learning, responsible participation in democratic society. By means of Article 12, removal is provided for of the physical and communicational obstacles, along with the additional support in education for the students and adults who, due to the developmental impairments and disabilities, specific difficulties faced in learning, social deprivation, the risk of early leaving of schooling, are in need of such support. The objective of additional support in education and upbringing is to achieve optimum inclusion of the students and adults in the full-time educational work, achieving autonomy in peer collective and their progress in education and preparation for the world of labour. The Law on Dual Education (Official Gazette of the RS, No. 101/17, 6/20, 76/23), in Article 3, underlines the following principles: ethics – respecting personality and dignity of the students and achievement of educational objectives, availability – equal conditions for all for quality access to dual education, equal opportunities – provision of equal conditions for acquiring education, without any discrimination based on sex, racial, national, cultural, ethnic or religious affiliation, language, sexual orientation, place of residence, financial standing, disability or other personal characteristics. During learning through work with an employer (Article 10), discrimination of students, physical, psychological, social, sexual, digital and any other violence, abuse and neglect of the students are prohibited. The Law on Textbooks (Official Gazette of the RS, No. 27/18, 92/23) Equal opportunities and non-discrimination are defined in Article 13: “The textbook, handbook, the electronic addition to a textbook, the additional teaching means, didactical means and didactical play means should, by their contents and form, ensure the implementation of the principle of equal opportunities and respect for diversities. The textbook, handbook, the electronic addition to a textbook, the additional teaching means, didactical means and didactical play means, by their contents or form, shall not discriminate against or place in an unequal position any group or individual, and shall not incite to such behaviour, in accordance with the law regulating non-discrimination.” Within the mandatory additional professional training, one of five priority fields of the mandatory training for teachers, as laid down by the Rulebook on permanent professional training of teachers, preschool teachers and professional associates shall be to: create a tolerant and non-discriminatory environment for each individual, as well as prevention of violence, prevention of discrimination and inclusion of children from the socially marginalised groups.

The Law on Higher Education (Official Gazette of the RS, no. 88/17, 73/18, 27/18 – other law, 67/19, 6/20 – other laws, 11/21 – authentic interpretation, 67/21 – other law, 67/21 and 76/23), in Article 3, as one of the objectives of the higher education, also prescribes provision of equal conditions for acquisition of higher education and life-long education, and prescribes, in Article 4 the principles on which the activity of higher education is based, and indicates respect for humanistic and democratic values of the national and European tradition and values of cultural heritage and respect of human rights and civil freedoms, including prohibition of all aspects of discrimination, equality of higher education institutions irrespective of the form of ownership, or the identity of the founders. In addition to the above, Article 101, which is regulating the rights and obligations of students, envisages that the all the students are entitled to the conditions for studying of equal quality, to education provided in the language of a national minority, in accordance with the law and the accredited study program, to diversity and protection from discrimination, to respect for personality, dignity, honour and reputation.

With a view to ensuring development and improvement of the quality of higher education, the National Higher Education Council has been formed, which, among other things, passes the Fundamentals for the Code of Academic Integrity in the higher education institutions in the Republic of Serbia, which prescribe, in point 9 thereof, that any form of discrimination in the higher educational institutions shall be prohibited, and that the competence, capability and professional merits, as well as the results achieved in conducting a specific type of business activity, jobs and tasks shall be taken into account as the only relevant criteria for valuation and advancement of the members of academic community, and it is additionally prescribed in point 14 that the teachers shall be obliged to provide to all the students in principle equal opportunities for acquiring knowledge as well as to value the students' work openly, fairly, objectively and in a timely manner, and it is prescribed in point 32 thereof that any form of discrimination shall be prohibited in the valuation procedure for the conditions for professional advancement, as well as in the procedure for advancement itself, and that all the members of the academic community shall have equal conditions for promotion based on the assessment of compliance with the professional obligations.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

By the Strategy of the Development of Education by 2030, the strategic commitment of the RS Government and of the Ministry of Education, as a part of the RS Government, is to provide quality education for all the citizens through openness, fairness, accessibility and democracy of education, and special attention will be paid to providing equal opportunities for all the children. Provision of systemic support to pupils/students along their educational path is a priority of the Ministry of Education, with a focus on those coming from unstimulating environments and vulnerable social groups.

The Law on Fundamentals of the System of Education and Upbringing – the LFSEU (Official Gazette of the RS, No. 88/17, 27/18 (other law), 10/19, 6/20, 129/21, 92/23) defines non-discrimination (Article 110) as follows: “Discrimination and discriminatory behaviour, having the purpose of making any unjustifiable distinction or providing unequal treatment and/or omission to act (exclusion, restriction or preferential treatment) in relation to a person or groups of persons, as well as in relation to the members of their families or persons who are close to them, either directly or indirectly, in an open or covert manner, which is based on race, colour of the skin, ancestors, citizenship, migrant and/or displaced person's status, nationality or ethnic origin, language, religious or political convictions, sex, gender identity, sexual orientation, financial standing, social and cultural origin, birth, genetic characteristics, health condition, developmental impairments and disabilities, marital and family status, criminal record, age, appearance, membership in political, union and other organisations and other actual and/or presumed personal characteristics, as well as on other bases, laid down by the law prescribing non-discrimination and shall be prohibited in institutions.”

The Law on Higher Education (Official Gazette of the RS, no. 88/17, 73/18, 27/18 – other law, 67/19, 6/20 – other laws, 11/21 – authentic interpretation, 67/21 – other law, 67/21 and 76/23), in Article 3, as one of the objectives of the higher education, also prescribes provision of equal conditions for acquisition of higher education and life-long education, and prescribes, in Article 4 the principles on which the activity of higher education is based, and indicates respect for humanistic and democratic values of the national and European tradition and values of cultural heritage and respect for human rights and civil freedoms, including prohibition of all aspects of discrimination, equality of higher education institutions irrespective of the form of ownership, or the identity of the founders. In addition to the above, Article 101, which is regulating the rights and obligations of students, envisages that all the students are entitled to the conditions for studying of equal quality, to education provided in the language of a national minority, in accordance with the law and the accredited study program, to diversity and protection from

discrimination, to respect for personality, dignity, honour and reputation.

The Fundamentals for the Code of Academic Integrity in institutions of higher education in the Republic of Serbia prescribe, in point 9 thereof, that any form of discrimination in the higher educational institutions shall be prohibited, and that the competence, capability and professional merits, as well as the results achieved in conducting a specific type of business activity, jobs and tasks shall be taken into account as the only relevant criteria for valuation and advancement of the members of academic community, and it is additionally prescribed in point 14 that the teachers shall be obliged to provide to all the students in principle equal opportunities for acquiring knowledge as well as to value the students' work openly, fairly, objectively and in a timely manner, and it is prescribed in point 32 thereof that any form of discrimination shall be prohibited in the valuation procedure for the conditions for professional advancement, as well as in the procedure for advancement itself, and that all the members of the academic community shall have equal conditions for promotion based on the assessment of compliance with the professional obligations.

Special laws include provisions on non-discrimination as well. Article 3, paragraph 3 of the Law on Preschool Upbringing and Education prescribes that in the realisation of the activity of preschool upbringing and education, as well as of other activities of a preschool institution, all the types of violence, abuse and neglect, whereby children, and/or groups of children, are threatened, discriminated against or excluded, on any grounds whatsoever, shall be prohibited.

o Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

☐ **In pre-primary education (including early learning and care)**

☐ **In primary education**

☐ **In secondary education**

☐ **In technical and vocational education and training**

☐ **In higher education**

☐ **In adult education and alternative learning**

- Please provide details:

By applying and developing COR 4 in practice: Quality education – Provide inclusive and fair quality education and promote the possibility of life-long learning for all, the Ministry of Education contribute to the improvement of quality and accessibility of education for each child, guided by the best interest of the child, with the special focus on the vulnerable social groups. By applying the principle of inclusive education in the Republic of Serbia, the institutions for education and upbringing realise different support measures, such as: the free textbooks, adjustment of the final examination, affirmative measures for enrolment in high schools and higher education institutions, scholarships and a number of other measures. Among the results that is introducing innovative approaches in the field of inclusive education is the establishing of 13 resource centres for support to inclusive education. Through various activities of the resource centres, efficiency and effectiveness of the additional support services in education are increased, and expert, effective and timely support to the teachers, children and pupils/students with developmental disabilities and their parents is made available. By doing that, inclusion of children and young people from the vulnerable social groups in quality inclusive education is supported, with a special focus on application of assistive technologies. In the period 2021 to 2024, 5,371 children were covered by the provision of additional support by the resource centres. The program of free textbook provision is also a significant support measure for the pupils/students with developmental impairments and disabilities. By applying that program for the school year of 2021/22, 2,622 adapted textbook units were provided, for the school year of 2022/23 2,593 adapted textbook units were provided, and for the school year of 2023/24, 2,313 textbook units were provided which were adapted for the pupils/students with developmental impairments and disabilities. Some of the challenges faced in the provision of and approach to inclusive education include insufficiently developed interdepartmental cooperation on the national and local levels, insufficient capacities on the local level for implementation and monitoring of inclusive education, as well as the challenges faced in the programs for initial education of teachers in Serbia. The results of a series of activities aimed at supporting the children with developmental impairments and disabilities whereby inclusive education is promoted as well include: increasing the educational coverage of children and pupils/students; increasing the number of students from the vulnerable groups on the higher levels of education; increasing the

number of students educated according to the individual educational plans (IEP) in the regular schools coupled with a downward trend for the number of pupils/students in the schools for children with developmental impairments and disabilities. Within the development of inclusive education, as the support to schools, 37 advisors were hired as external associates. The effects of the support measures on the improvement of education for the members of the Roma national minority group and reducing the gap in relation to the pupils/students from the majority population group. In particular, the Ministry of Education highlight the results achieved in educating the children of Roma nationality, as one of the most vulnerable social groups. Over the past five years, through the application of various support measures, the number of children of the Roma nationality attending the Preparatory Preschool Program (PPP) has been increased by 20 %, and the percentage of Roma children enrolled in primary schools rose by 15 %. Dropping out from the educational system has continuously been reduced, and the rate of the high school graduates has increased by 20 %. We should in particular highlight here that the percentage of Roma girls in high schools has been increased by 12 %. The pedagogical assistants (PA), who can speak the Roma language and who provide support to the children and pupils/students of Roma nationality both in the primary and in the secondary schools have significantly contributed to the achievement of these results, and there are currently 272 of these assistants within the system (they are financed from the local and from the Republic levels), 231 of which are engaged in primary schools, 9 in secondary schools, while 32 pedagogical assistants are engaged in the preschool institutions. For the past three school years (2021/2022, 2022/2023 and 2023/2024), the Ministry hired 47 additional PAs. For all the PAs, attending of remote training has been provided free of charge (the training financed from the budget of the Ministry of Education), “Training for pedagogical assistants for children and students of Roma nationality in need of additional support in education”. The training is available on the National Educational Portal and it is available to all the PAs at the time of their hiring, and among the topics covered by the training are the measures for identification and prevention of discrimination in education. In addition to that, IT equipment has been provided, computers for schools and lap top computers for the PAs, as a form of support to their work in schools and for their field work. Provision of scholarships is a continuous systemic support measure for the pre-university education of Roma. Over the past nine school years, the total of 8,737 scholarships has been awarded to the Roma students, 65 % of which are female students. Among the measures aimed at preventing and combating discrimination of the Roma children in education is the available option to attend the elective program of *Roma Language with Elements of National Culture*, which is on average each year attended by 2,600 to 3,000 pupils in 68 to 72 primary schools, and these classes are provided by 60 teachers of the subject of Roma Language with Elements of National Culture. In the Catalogue of Textbooks in the languages of national minorities, textbooks are included for the initial 6 grades of the primary school, and preparatory work on the textbooks for the seventh and eighth grades is in progress. By hiring of the pedagogical assistants who are providing support to children and pupils of the Roma nationality and of the teachers who are teaching Roma language a contribution is made to increased employment of the members of Roma national community.

Additional professional training of the staff members in the educational system on/for human rights

In addition to the continuous improvement the legal regulations in the field of protection from violence and discrimination in the system of education and upbringing, the Ministry of Education is dedicating intensive efforts to the improvement of competences of the staff working in educational institutions for efficient acting in cases of discriminatory behaviour with the aim of providing timely reactions and mitigating the negative consequences. The Law on Fundamentals of the System of Education and Upbringing prescribes the additional professional training and professional development of teachers, preschool teachers and expert assistants (Article 55). In addition to that, the field of additional professional training is regulated by the Rulebook on permanent professional training and advancement to the titles of teacher, preschool teacher and expert associates (Official Gazette of the RS, number 109/2021). The priority fields for the period of three years, the forms, programs and the method of additional professional training, acquiring of knowledge and the form of certificate of completed program are prescribed by the minister of education. Among the competences which are prescribed for additional professional training and professional development of teachers, preschool teachers and expert associates are the K4 competences related to the competences for communication and cooperation. Among the priority fields is the P4 field, which includes: Strengthening the upbringing role of the educational institutions through development of programs for the prevention of violence, discrimination, abuse and neglect. Within their additional professional training, teachers and expert associates are obliged to attend the training courses focusing on prevention of and protection from discrimination, prevention of and protection from violence, abuse and neglect, constructive conflict resolution, on the topic of non-violent communication, application of the Reference Framework for Democratic Culture of the CoE, on the topic of tolerance development, identification of stereotypes and prejudice and on prevention of hate speech. In addition to that, the Catalogue of Programs of Permanent Professional Training for Teachers, Preschool Teachers and Expert Associates for the School Years of 2022/2023, 2023/2024 and 2024/2025, at <https://zuov-katalog.rs/>, includes seven accredited programs on the topic of interculturality, five programs on the topic of gender equality, and the topic of protection from discrimination is represented by 20 programs. In the period 2022-2024, training courses dealing with the topic of protection from discrimination were attended by 1,000 staff members in the educational system, the

training courses on the topic of interculturality were attended by 200 participants, and the topic of gender equality attracted 100 participants. It should be particularly noted here that there are 5 accredited training courses on the topics specifically dealing with support to pupils/students of the Roma nationality in education and those that are dedicated to improving the staff members' competences in education against racism and discrimination on the List of Training Courses of Public Interest. In the course of 2023 and 2024, five training courses were realized with the total of 220 participants. Bearing in mind that dropping out of the educational system is a significant obstacle during schooling, specifically for the pupils/students of the Roma nationality, the Ministry of Education established a system for early identification and reaction with the aim of preventing dropping out of school, and instructions were created for preventing early leaving of school. In the course of 2023, 19 training courses were organized for 482 participants from 47 schools, which were entitled "Training for Planning, Implementation and Monitoring of Measures Aimed at Preventing Student Dropping Out", which was accredited as a training program of public interest, and the realization of which was financed from the budget of the Ministry of Education. So far, the total of 2,580 staff members from 291 primary and secondary schools have attended this program.

Continuous efforts are dedicated to strengthening staff members' competences for inclusive education, and in the course of 2023 only, 8,300 staff members in the educational system were covered by different training programs.

Since 2019, the Ministry of Education has been announcing public calls for selection of organizers, providers and programs of additional professional training of public interest, which are of significance for the development of staff members' competences in preschool institutions and in primary schools. In 2021, the financial means for organisation and realisation of additional professional training programs under the Public Call and based on the Decision of the Minister, were awarded to the following programs: "Inclusion as a part of staff members' skills in preschool and primary school education", in the amount of RSD 450,000.00. The program was aimed at improving the professional competences of the preschool teachers and teachers for inclusive realisation of the curricular activities. By means of the Decision of the Minister, the program was included in the List of Training Courses of Public Interest; along with the program entitled "Use of Communication Skills to Achieve Democratic Involvement in the Society", in the amount of RSD 1,100,000.00. The Program was aimed at developing and improving professional competences of teachers and expert associates in primary education and upbringing for efficient communication in teaching process, which contributes to building and encouraging democratic pupils' participation in the society. Based on the Minister's Decision, the Program was included on the List of Training Courses of Public Interest.

In 2023, the financial means in the Public Call for the selection of organizers, providers and programs of additional professional training of public interest, which are of significance for the development of staff members' competences in preschool institutions and in primary schools, based on the Decision of the Minister, were awarded to the program entitled "The Role of the Educational System in Protection of Children against Abuse and Neglect", in the amount of RSD 1,030,000.00. The aim of the Program is strengthening professional confidence of the preschool teachers in the preschool institutions, as well as of the teaching staff members in primary schools in order to improve the competences and to master the skills of identification and prevention of child abuse and neglect. By means of the Minister's Decision, the Program was included in the List of Training Programs of Public Interest.

The Ministry of Education dedicates special attention to the improvement of staff members' competences for strengthening the educational role of schools and the realisation of preventive activities with pupils and parents, and the latest support to the staff members is included in the guide entitled "Upbringing for wellbeing and comprehensive development of children". In the course of 2022 and 2023, more than 42,300 staff members were strengthened in educational institutions for acting in cases of suspected or identified violence and/or discrimination, but also in realisation of preventive activities with the aim of raising pupils' awareness for identification and timely reacting to different forms of cases involving violence. Realising the importance of the resource, but also the importance of the exchange of experiences of the staff members in the educational system, the Ministry, in cooperation with the Institute for Improvement of Education, create the online portals that cover the topics such are the responsible behaviour to health, antidiscrimination and pupils' safety. On the website of the Ministry of Education, resources of importance for competence strengthening in education in the field of prevention of and protection from discrimination are provided, which were created within the Ministry's cooperation with the civil society organisations with the support from the international donors: "A guide through prevention and response to discrimination for the staff members in

educational institutions – From Identification to Action”; “Brochure for Parents – Prevention, Protection and Action in cases of discrimination in the field of education”; “Brochure for Parents – Prevention, Protection and Action in cases of discrimination in the field of education”, <https://prosveta.gov.rs/kategorija/publikacije/page/2/>. The “Guide to prevention of segregation in educational institutions and undertaking desegregation measures” should be particularly highlighted here as well, which is provided on the website of the Ministry of Education at <https://prosveta.gov.rs/wp-content/uploads/2022/12/vodic-zaspjecavanje-sagregacije.pdf> and which is an activity that completes the resources in education for application of legislation serving to achieve just and non-discriminatory education and society as a whole. Some other publications should also be highlighted here, which were also made available on the website of the Ministry of Education, and specifically: the Guide for staff members in primary and secondary educational institutions, “Upbringing for wellbeing and comprehensive children’s development”, the Guide for the promotion of democratic culture in schools, the Guidelines for the promotion of democratic culture: a package of materials for mentoring schools, at <https://prosveta.gov.rs/kategorija/publikacije/>.

Within the Project “Together and Safely through Childhood”, which is realized by the Ministry of Education in cooperation with the Ministry of Interior, Commissioner for Protection of Equality and other project partners, workshops were organized which were entitled “Peer violence prevention in physical and virtual environments” in all the primary schools. During the interactive workshops, the pupils were provided with opportunities to improve their knowledge of the forms of violence and discrimination, and of the identification and reaction methods. Their knowledge before and after the realized activities were assessed through the Kahoot quiz. The quiz questions were related to identification and reaction methods in the cases involving violence and discrimination. Almost 4,600 pupils of primary schools took part in the said activities.

On the National Platform “I protect you”, training courses for staff members, parents and children are available which are dealing with the topics in the field of protection from violence, discrimination, identification, reaction methods and provision of support in cases involving violence. From the very beginning of operation of the National Platform, the Ministry of Education was closely involved in the creation of informational and educational contents, as well as in the creation of the contents of the training courses. Currently, there are 15 training courses that have been made available on the National Platform, which are dedicated to the above mentioned topics. Among the training courses available on the National Platform are: “Support to children from vulnerable social groups in cases of discrimination, violence, abuse and neglect” – a training course for parents (447 parents have so far attended the training course); “What a parent should do when they learn of a case of violence in school” – a training course for parents (4,907 parents have so far attended the training course); “What can you do when you learn that your boy or girl friend suffers violence” – a training course for pupils (12,797 of them have so far attended the training).

In the domain of higher education, the Ministry of Education makes a contribution to the improvement of quality and availability of higher education with a special focus on the vulnerable social groups. By applying the principle of inclusive education in the Republic of Serbia, the higher education institutions are realizing various support measures, such as: the affirmative measures for enrolment in higher education institutions, scholarships for students, student credits, as well as other measures. In addition to that, the Ministry of Education, within the Expert Instructions for the implementation of enrolment in the first year of study programs of the basic and integrated study courses in higher education institutions founded by the Republic of Serbia, have envisaged the Program of affirmative measure for enrolment of persons with disabilities, the Program of affirmative measure for enrolment of the members of the Roma national minority, and the Guidelines for adjustments to the enrolment examination to the persons with disabilities intending to get enrolled in the study courses within the program of affirmative measures for enrolment of persons with disabilities and candidates with disabilities stating the need for adjustments to the enrolment examination are its integral part.

In addition to the above, the Ministry of Education has passed the Expert Instructions for implementation of enrolment in the first year of the study programs of the Master and Doctoral study courses at the higher education institutions founded by the Republic of Serbia, within which the enrolment of persons with disabilities, members of the Roma national minority, members of the Serbian national minority groups from the neighbouring countries, foreign nationals and foreign nationals with the status of migrants/asylum seekers has been regulated in more detail. These Expert Instructions prescribe that the enrolment through application of affirmative measures for the persons who are members of the Roma national minority and for the persons with disabilities is to be carried out in accordance with the Program of affirmative measure of enrolment of the persons with disabilities and the Guidelines for adjustments to the enrolment examination to the persons with disabilities intending to get enrolled in the study courses by application of affirmative measure for persons with disabilities, and/or for persons stating the need for additional adjustment. It has been envisaged, in respect of the enrolment of the members of Serbian national minority from the neighbouring countries, that that category of candidates can be enrolled at the first year of a study course under the same conditions as the nationals of the Republic of Serbia, including the right to enrolment at a study course in the status of a

student financed from the national budget. In respect of the enrolment of the foreign nationals, it is prescribed that they can be enrolled at the first year of a study course under the same conditions as the nationals of the Republic of Serbia in respect of their previous education. In addition to that, it is envisaged that the enrolment of the foreign nationals with the status of a migrant or an asylum seeker at the first year of a study course shall be carried out under the same conditions that are applicable to the nationals of the Republic of Serbia.

The Law on Higher Education, in Article 109, additionally prescribes the special, longer time limits for completion of studies for the students who are attending the studies while working, for the students with disabilities, students who are enrolled under an affirmative measure and for the students having the status of a categorised top athlete, for which the Law prescribes that they shall retain the student status until the expiry of the time limit determined as the triple number of the school years required to complete the study program concerned.

For the students with disabilities, the Law on Higher Education prescribes in Article 105 that they shall have the right to take the examinations in the place and in the manner which are adapted to their capabilities in compliance with the general act of the institution of higher education.

o **Combatting discrimination in terms of curriculum:**

☐ **In pre-primary education (including early learning and care)**

☐ **In primary education**

☐ **In secondary education**

☐ **In technical and vocational education and training**

☐ **In higher education**

☐ **In adult education and alternative learning**

- Please provide details:

Education on human rights and for human rights is an integral part of the system of education and upbringing, both in the legislative sense, and through the disciplinary and interdisciplinary competences, outcomes, but also through the additional professional training for the staff members in the educational system. All the teachers are obliged to link the outcomes and contents of their specific classes and disciplines in such a manner as to encourage development of interdisciplinary competences among the pupils/students, such as the Responsible Participation in a Democratic Society. Through the strengthening of competences for democratic culture in schools, children and pupils/students, and their parents as well, are encouraged to take an active part in the society, development of the concept of rights and responsibilities. A particularly important segment is the development of critical thinking among the students. Thus, the measures aimed at preventing the discriminatory behaviours are an important part of the efforts to achieve quality and accessible education for all. Respecting the democratic procedures, responsible, humane and tolerant behaviour in society, sensitivity to social injustice, cooperation and team work are some of the outcomes which are connected to human rights, and which are included in the teaching and learning programs. Since 2022, the Ministry of Education has established a network of counsellors who are external associates for democratic culture in schools, and 20 counsellors have been appointed by the Ministry (the staff members in schools in the territories of all the school administrations) who are financed by the Ministry of Education, and who are providing support to all the schools and informing them of the methods for implementation of competences for democratic culture (CDC). On the level of a school year, at least 1,200 teachers and expert associates improve and promote their knowledge and skills.

o Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

The Expert Instructions for the implementation of enrolment in the first year of study programs of the basic and integrated study courses in higher education institutions founded by the Republic of Serbia have envisaged the Program of affirmative measure for enrolment of persons with disabilities, the Program of affirmative measure for enrolment of the members of the Roma national minority, and the Guidelines for adjustments to the enrolment

examination to the persons with disabilities intending to get enrolled in the study courses within the program of affirmative measures for enrolment of persons with disabilities and candidates with disabilities stating the need for adjustments to the enrolment examination are its integral part.

In addition to the above, the Ministry of Education has passed the Expert Instructions for implementation of enrolment in the first year of the study programs of the Master and Doctoral study courses at the higher education institutions founded by the Republic of Serbia, within which the enrolment of persons with disabilities, members of the Roma national minority, members of the Serbian national minority groups from the neighbouring countries, foreign nationals and foreign nationals with the status of migrants/asylum seekers has been regulated in more detail. These Expert Instructions prescribe that the enrolment through application of affirmative measures for the persons who are members of the Roma national minority and for the persons with disabilities is to be carried out in accordance with the Program of affirmative measure of enrolment of the persons with disabilities and the Guidelines for adjustments to the enrolment examination to the persons with disabilities intending to get enrolled in the study courses by application of affirmative measure for persons with disabilities, and/or for persons stating the need for additional adjustments. It has been envisaged, in respect of the enrolment of the members of Serbian national minority from the neighbouring countries, that that category of candidates can be enrolled at the first year of a study course under the same conditions as the nationals of the Republic of Serbia, including the right to enrolment at a study course in the status of a student financed from the national budget. In respect of the enrolment of the foreign nationals, it is prescribed that they can be enrolled at the first year of a study course under the same conditions as the nationals of the Republic of Serbia in respect of their previous education. In addition to that, it is envisaged that the enrolment of the foreign nationals with the status of a migrant or an asylum seeker at the first year of a study course shall be carried out under the same conditions that are applicable to the nationals of the Republic of Serbia.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|---|
| o <u>Legislation provides for inclusive education for all</u> | o <u>Multiple and flexible learning pathways¹⁷ are provided for</u> |
| o <u>Policy measures aim to enhance inclusion in education for all</u> | o <u>Curricula and teaching methods are inclusive in design¹⁸</u> |
| o <u>Teachers are trained on inclusive education¹⁶ and to value diversity</u> | o <u>Multilingual and intercultural education is supported</u> |
| o <u>Initiatives to address discrimination and promote cultural diversity and mutual acceptance</u> | |

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

o Other:

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- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Activities realized by the Ministry of Education with the aim of preventing and combating discrimination in schools:

- So far, more than 900 staff members in the educational system improved their knowledge and skills for the implementation of by-laws (rulebooks) regulating identification and actions in the cases involving discrimination and discriminatory behaviours through accredited training courses which are directly dedicated to protection from discrimination and identification and prevention of segregation. Training courses in this field are provided continuously and shall be continuously provided in the following period.

- Through strengthening competences for democratic culture in schools, children and pupils/students and their parents are encouraged to take active part in the society, and to develop the concepts of rights and responsibilities. A particularly important segment is the development of critical thinking among the pupils, which includes considering the notion of the so-called “white escape” from school. Thus, the measures aimed at preventing discriminatory behaviours are an important part of the efforts to achieve quality and accessible education for all. Respecting the democratic procedures, responsible, humane and tolerant behaviour in society, sensitivity to social injustice, cooperation and team work are some of the outcomes which are connected to human rights, and which are included in the teaching and learning programs. Since 2022, the Ministry of Education has established a network of counsellors who are external associates for democratic culture in schools, and 20 counsellors have been appointed by the Ministry (the staff members in schools in the territories of all the school administrations) who are financed by the Ministry of Education, and who are providing support to all the schools and informing them of the methods for implementation of competences for democratic culture (CDC). On the level of a school year, at least 1,200 teachers and expert associates improve and promote their knowledge and skills.

- The Catalogue of Programs of Permanent Professional Training for Teachers, Preschool Teachers and Expert Associates for the School Years of 2022/2023, 2023/2024 and 2024/2025, at <https://zuov-katalog.rs/>, includes seven accredited programs on the topic of interculturality, five programs on the topic of gender equality, and the topic of protection from discrimination is represented by 20 programs. In the course of 2023, training courses dealing with the topic of protection from discrimination were attended by 600 staff members in the educational system, the training courses on the topic of interculturality were attended by 200 participants, and the topic of gender equality attracted 100 participants. In that Catalogue and on the List of Training Courses of Public Interest, there are 5 accredited training courses dealing specifically with the topic of support to pupils/students of the Roma nationality in education and those that are dedicated to improving the staff members’ competences in education against racism. In the course of 2023, three training courses were realized with the total of 155 participants.

- On the website of the Ministry of Education, resources of importance for competence strengthening in education in the field of prevention of and protection from discrimination are provided, which were created within the Ministry’s cooperation with the civil society organisations with the support from the international donors: “A guide through prevention and response to discrimination for the staff members in educational institutions – From Identification to Action”; “Brochure for Parents – Prevention, Protection and Action in cases of discrimination in the field of education”; “Brochure for Parents – Prevention, Protection and Action in cases of discrimination in the field of education”, <https://prosveta.gov.rs/kategorija/publikacije/page/2/>. The “Guide to prevention of segregation in educational institutions and undertaking desegregation measures” should be particularly highlighted here as well, which is provided on the website of the Ministry of Education at <https://prosveta.gov.rs/wp-content/uploads/2022/12/vodic-za-sprecavanje-sagregacije.pdf> and which is an activity that completes the resources in education for application of legislation serving to achieve just and non-discriminatory education and society as a whole.

- In addition to the above, the Ministry of Education has supported numerous projects through public calls which are being regularly announced each year. Two priorities of the Public Call for allocation of funds for the promotion of programs or for the missing portion of funding for financing programs of public importance of significance for the pre-university education realized by the associations 2020 were related to the issue of discrimination: promotion of participation by the staff members in education, pupils/students and the parents in prevention of and protection from violence and discrimination (an innovative approach in preventive work, informational campaigns aimed at awareness raising, interactive methods of work in the field of prevention) and implementation of the Reference Framework of Competences for Democratic Culture of the Council of Europe. In 2020, two program were supported by it; in 2021, 9 programs were supported; in 2022, 19 programs were supported and for

2023, the total of 27 programs were granted financial resources under the above mentioned priorities (USD 500.000 in the period 2020-2023).

The Law on Higher Education, in Article 109, additionally prescribes the special, longer time limits for completion of studies for the students who are attending the studies while working, for the students with disabilities, students who are enrolled under an affirmative measure and for the students having the status of a categorised top athlete, for which the Law prescribes that they shall retain the student status until the expiry of the time limit determined as the triple number of the school years required to complete the study program concerned.

For the students with disabilities, the Law on Higher Education prescribes in Article 105 that they shall have the right to take the examinations in the place and in the manner which are adapted to their capabilities in compliance with the general act of the institution of higher education.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Challenges:

- Strengthening of the role of schools in upbringing
- Continuous work with the parents
- Difficulties in monitoring of the vulnerable groups, since their recording is conditional upon their declaration of affiliation to specific groups

-Problems in the work of institutions of pre-university education on the territory of Kosovo and Metohija

The organization and implementation of the final exam for eighth-grade students, that is, the acquisition of basic education and upbringing, is called into question. It is difficult to deliver free textbooks to primary school students who exercise their right, and therefore students remain deprived of them.

It is impossible to transfer office and consumables for the needs of all primary and secondary schools in Kosovo and Metohija, computer and ICT equipment, as well as the delivery of the National Reading Book and donations for first graders provided by companies, such as Bambi, Univerexport

The problems in secondary education in the territory of Kosovo and Metohija (KiM) significantly affect the coverage, equity, quality, and relevance of the education system. Here are some key aspects:

1. Coverage and Equity in Education:

- o Irregularities in access to education for all students, particularly for information technology and specialized departments, such as the IT department in the high school in Kosovska Mitrovica and secondary music schools.
- o Unequal opportunities for enrollment in vocational schools, leading to social discrimination.

2. Quality and Relevance:

- The lack of adequate teaching resources and learning materials hampers quality teaching.
- Investment into educational infrastructure is limited; it is especially problematic that the Republic of Serbia cannot utilize funds from EIB loans for schools in the Autonomous Province of KiM.

3. Connecting Education and the Economy:

- There is a need for greater integration of secondary vocational education with the economy and the establishment of a dual education system, which could significantly enhance student employability.

4. Shortage of Qualified Personnel:

- A pronounced lack of qualified personnel due to migration, which is a result of constant pressures, further complicates the quality of education.

5. School Safety:

- Increased hiring of support staff for the security of school facilities, as a consequence of frequent damage and incidents occurring in schools.

6. Professional Development:

- A lack of funds for professional development for teachers, educational advisors, and principals negatively impacts professionalism and the quality of instruction.

Addressing these issues requires multisectoral cooperation, increased investment in educational resources and infrastructure, as well as support from local and international actors.

- Problems of students in the territory of Kosovo and Metohija

Difficulties in obtaining documents necessary for concurrence for accommodation in student dormitories, student loans, scholarships... - Due to the closure of Serbian institutions (temporary authorities) in Kosovo and Metohija, we face daily difficulties when it comes to obtaining documents.

Difficulties in registering for the year and registering for the exam - Given the closure of Serbian banks and the abolition of the dinar, as well as the closure of the Post Office, students are unable to pay the money for registering for the exam, i.e. registering for the year, and have to travel to other parts of Serbia in order to complete their obligations, which often exposes them to additional costs.

The complete ban on dinars came into effect on May 12, while branches of Poštanska Štedionica and branches of the Treasury Department of the Ministry of the Republic of Serbia were closed on May 20.

The raid on the premises of the Post of Serbia in four municipalities in Kosovo and Metohija took place on August 5, 2024, when nine facilities were closed.

Difficulties in obtaining student cards and obtaining discounts that students from all over our country have access to. - Due to the closure of the branches of the Bank poštanska štedionica, students are not able to collect student cards, and due to the lack of our products and services, students have limited opportunities to obtain discounts that are available to students from all other universities.

Deportation of a student of our university - a student of the Faculty of Philosophy of the University of Pristina,

Anđela Bojović (a student from Montenegro) was deported by the so-called of the Kosovo authorities because she stayed in the territory of Kosovo and Metohija continuously for more than three months.

- Problems with the payment of wages, scholarships and loans

With the abolition of the dinar, the closure of the Treasury Administration in Kosovska Mitrovica, the closure of Postal Savings Banks, a huge problem arose regarding paying bills, organizing and conducting student excursions, raising employees' wages, etc. For now, we have no information on whether there is any pressure on teachers, professors, which means that there is not, because when a problem arises, the principals first inform the School Administration and then the authorities in the Ministry of Education.

- Forcible relocation of the library

The decision of the so-called The Privatization Agency of Kosovo, the University of Pristina with its temporary headquarters in Kosovska Mitrovica, had the premises where the University Library was located, although the University has all the necessary documentation proving the ownership of that building. On May 15, 2024, by the decision of the executor from the so-called of the Kosovo system, under coercive measures, all books and other material from the University library used by all teachers and students of the University of Prishtina were moved, which directly threatened the right of students to study in an adequate space, and the library fund of several tens of thousands of books/titles was also threatened .

- Temporary blocking of the work of the Academy of Vocational Studies in Kosovo Metohija By usurping and blocking the offices of the Provisional Authority of the Municipality of Leposavić, which are located in the same building as the Academy of Vocational Studies of Kosovo Metohija and the Institute of Serbian Culture, the work of these two higher education and scientific institutions was also temporarily blocked. Although the Academy's teachers were subsequently allowed to return to the part of the building used by the Academy in order to hold classes and exams, the teaching and professional work of the Academy was threatened, and teachers and other employees were asked to wear clearly visible signs that they were employees of the Academy, which they are additionally intimidated and branded in a peculiar way. The employees of the scientific institute - the Institute for Serbian Culture - are in an even more difficult position.

Problems in the work of the University, the Student Center and the Student Polyclinic Unilateral actions and measures of the Pristina authorities greatly affect the life and work of students and teachers. This is primarily reflected in the prevention of teachers coming to work and students coming to exams, bearing in mind that a large number of teachers and students come from other parts of the Republic of Serbia.

The usurpation and blockade of the offices of the Provisional Authorities in the north of Kosovo and Metohija prevented the work of registry offices and the issuing of basic documents (excerpts, certificates, certificates), while the abolition of payment transactions in dinars further hampered the functioning of the remaining institutions of the Republic of Serbia in these areas.

The impossibility of using license plates issued by the Republic of Serbia has greatly affected the mobility of students and teachers. Also, the large presence of the Kosovo Police and constant stops and controls at traffic checkpoints represent additional pressure on the population.

Also, members of the police in uniforms and in civilian clothes are constantly legitimizing the population, raiding facilities where young people gather, provoking, and there have been incidents resulting in beatings and arrests of students and other categories of the population.

Stopping work on the new University building.

- On July 20, 2023, all work was stopped on the new building of our university, which was supposed to house the Rectorate and four faculties of the University and where all the necessary premises for work and holding classes

would be located.

Difficulties in delivering food to the canteen within the Student Center "Pristina" in Kosovska Mitrovica - Due to the ban on the import of Serbian goods to Kosovo and Metohija from June 14, 2023, the Student Center is facing a shortage of food, which is why it was forced to, in cooperation with the student representatives, change the menus and adjust the diet of the students.

Difficulties in the delivery of medical materials for the student polyclinic - In the last few years, we have encountered difficulties in the delivery of materials for the student polyclinic to which all students of our university have access. During the corona period, it was not possible to deliver vaccines against the virus and provide adequate protection for students. In 2023, at the initiative of SKONUS, all student polyclinics received a certain number of free doses of the vaccine against the HPV virus, and on this occasion, our students were also left without the opportunity for adequate health prevention.

Difficulties in the implementation of classes and maintaining examination deadlines - the University Administration and its faculties try to provide students with the conditions for work and education at all times, but we have repeatedly encountered the closure of crossings and the ban on the entry of students and professors into the territory of Kosovo and Metohija, which is why we are forced to find compromise solutions in those conditions so that classes can take place or make up without interruption.

Photography of buildings and premises of the faculty. Temporary institutions of self-government regularly photograph the buildings and premises of the faculty, which further causes restlessness among our students.

All of the above greatly influences the intention of future students to enroll in one of our faculties, and the outflow of existing students is also noticeable. The large number of passive students who did not renew the year is a direct consequence of the current political and security situation in the Province.

Despite everything, employees and students are determined to stay and survive and make their maximum contribution to the survival of our people in these areas. In this, they have the undivided support of the Republic of Serbia and the wider social community.

During the last school year, 3 situations of peer violence were reported by the competent School Administration of Kosovska Mitrovica. In addition to referring to the procedures for dealing with situations of violence in accordance with the by-laws, the Ministry of Education, during the advisory work with colleagues from schools in the territory of Kosovo and Metohija, stated that the cooperation of the school with the centers for social work and the police, which are responsible for the territory where it is located school is difficult. According to the knowledge of the Ministry of Education, more efficient cooperation with competent local systems (social and health protection system, police, prosecutor's office) is necessary, because they are of key importance for providing support to the education system in the field of prevention of all forms of violence and providing support to children and families.

Other relevant general measures, including gender equality

o Legislation provides for gender equality in education

o Policy measures aim to enhance gender equality

o Gender-responsive education sector

o All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education

o Re-entry programmes for young mothers are provided for

- planning is undertaken
 - o **Providing positive or affirmative action measures**
 - o **Providing financial incentives and fellowships**
 - o **Teachers are trained (initial and in-service) on gender equality**
 - o **Teachers are trained to combat stigmatisation**¹⁹
 - o Other:
-
- o Ensuring safe and adequate gender-sensitive sanitation facilities²⁰
 - o Curricula are rid of all stereotypes²¹ and bias
 - o **Ensuring gender parity in science, technology, engineering and mathematics (STEM)**
 - o Ensuring gender parity in technical and vocational training education and training (TVET)

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Gender equality

Despite the fact that the principle of gender equality is comprised in the operation of all the organisational units, a special unit – the Sector for the Promotion of Human and Minority Rights in Education is active within the Ministry of Education, which includes a Department for Human and Minority Rights in Education. The scope of work of the said Sector/Department includes monitoring of the functioning of educational system in the field of human and minority rights, monitoring of education of the vulnerable social groups, victims of human trafficking, migrants, refugees and internally displaced persons. The Department is participating in all the activities of the Ministry of Education and other state authorities in the fields of human, minority rights and women's rights, gender equality, protection from domestic violence, peer violence and discrimination. Bearing in mind the importance of the principle of gender equality as a socially important contract, each year, the Ministry of Education is guided by the Plan for Introduction of Gender Responsible Budgeting in the procedure for implementation and passing of the Republic of Serbia budget (the Ministry of Finance). In its Financial Plan, both for 2023 and for the current year of 2024, the Ministry of Education, when formulating the objectives, programs and program activities, ensured that the principles of gender equality is recognizable. It should be noted here that the indicators in the Financial Plan of the Ministry of Education are gender responsible. Each year, the Ministry of Education allocates funds for programs aimed at supporting the civil society organisations dealing with the promotion and improvement of human and minority rights in education and with the implementation of Sustainable Development Goals within the Goal 4. All the civil society organizations are eligible for participation in public calls. In each Public Call for allocation of funding for the promotion of programs or for provision of the missing portion of funding for financing programs of public interest realized by the associations on annual level, the priority areas are set. Among these areas is the creation of non-discriminatory stimulating school environment, as well as the respect for gender and any other equality. Through the Public Call announced in 2023, the following was allocated for the programs dominated by the topic of gender equality from the budget of the Ministry of Education:

- Creating of safe, non-discriminatory and stimulating environment, 31.30 % of the total budget for the Public Call, and
- Implementation of the Reference Framework of Competences for Democratic Culture of the Council of Europe – 22.80 % of the total budget for the Public Call.

In the educational system of the Republic of Serbia, the general and the interdisciplinary competences are prescribed as the most relevant ones for adequate preparation of students for active participation in the society and for life-long learning: the Digital Competence, Learning How to Learn, Communication, Responsible attitude to the environment, Responsible participation in democratic society, Handling data and information, Problem solving, Cooperation, Responsible relation to health). These interdisciplinary competences are an additional step in functional education and acquisition of life skills. The curriculum is

¹⁹ Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²⁰ Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

outcome-oriented and it should ensure development of all the interdisciplinary competences, but for the purpose of this Report, the interdisciplinary competence Responsible Participation in a Democratic Society is of significance – in the outcomes related to respect for human rights and freedoms. Within the school subjects, the outcomes are being introduced which are related to the respect for gender equality, diversity and intercultural dialogue. The respect for democratic procedures, responsible, humane and tolerant behaviour in the society, sensitivity to social injustice, cooperation and teamwork are some of the outcomes which are related to human rights, and which are included in the programs of teaching and learning. In addition to the mandatory elective subject of Civic Education, some new elective programs have been introduced for gymnasiums: Individual, Group and the Society; Language, Media and Culture; Health and Sports; Education for Sustainable Development; Art and Design; Applied Sciences; Fundamentals of Geopolitics; Economy and Business; Religions and Civilisations.

The results of the efforts made so far by the Ministry of Education on the inclusion of contents related to gender quality in the teaching and learning programs and on elimination of gender-based stereotypes and prejudice, as well as on the affirmation of the principle of gender equality in education are as follows:

a) In the domain of STANDARDS:

- Analyses prejudice, stereotypes, propaganda and other forms of bias in interpretation of historical phenomena (History, the first grade of secondary school);
- Explains the problems of contemporary humankind, such as, for example, discrimination (Geography, the first grade of secondary school);
- Develops the student's capability for the role of a responsible citizen for participation in a responsible and humane society (Sociology with Civil Rights, the fourth grade of secondary school);
- Lists the methods of manifestation of personal identity (Logics with Ethics, the third and the fourth grades of secondary school);
- Can recognize the impacts that are forming the personal identity (sex/gender), (Logics with Ethics, the third and the fourth grades of secondary school).

b) In the domain of OUTCOMES:

- Observes and expresses an attitude in relation to stereotypes, prejudice and other manipulations with the past on concrete examples (History, the first grade of the secondary school);
- Analyses the position and the lifestyle of children, woman and man and of the members of individual social strata in the Middle Ages (History, the first grade of the secondary school);
- Explains the roles of social groups with a special focus on marriage and family;
- Observes the importance of respect for human rights and freedoms (Sociology with Civic Rights, the fourth grade of the secondary school);
- Critically observes the system of values in a society (Values and Virtues as a Life Compass, the first and the second, the fifth and the sixth grades of the elementary school; the seventh and the eighth grades of the elementary school)
- Accepts others and respects their differences (Civic Education, all the levels of the elementary and secondary school).

c) In the domain of: TOPICS and the key terms within contents:

- Life in the country and in cities, professions, gender relations, position of women (History, the first grade of secondary school);
- Extended contents which are specific to male and female pupils have been proposed (Physical Education, all the levels of the elementary and secondary school);
- Personal rights and civic freedoms; Ethics; Family Law; Marriage and family (Sociology with Civic Rights, the fourth grade of

secondary school);

- The role of visual identity in the formation of personal identity (Logics with Ethics, the third and the fourth grades of secondary school);
- The notions of sex and gender (Logics with Ethics, the third and the fourth grades of secondary school)
- Human body and interventions on bodies (Logics with Ethics, the third and the fourth grades of secondary school)
- Tolerance, Social equality and justice, Love, Freedom
- Critical thinking (Values and virtues as a life compass, the first and the second, the fifth and the sixth grades of the elementary school; the seventh and the eighth grades of the elementary school);
- Personal identity, Stereotypes, Prejudice, Discrimination, Peer violence, Domestic violence, Communication, Position of individuals and social groups from the aspect of human rights (Civic Education, all the levels of the elementary and secondary school).

The International Girls' Day in ICT is marked each year on the fourth Thursday in the month of April, and the slogan this year is "Digital Skills for Life". The message of the slogan is that the girls and women need new skills in order to become not only the users, but also the creators in the digital world. Within the Project, during the months of July and August of 2023, the second consecutive Summer Programming School has been organized in Sremska Mitrovica, in which one hundred male and female participants who were students of the higher elementary school grades gathered, with equal representation of both the sexes. The male and female participants were divided in two shifts and they were provided with accommodation in the Secondary School Students' Home, and they attended classes organized in the Mitrovica Gymnasium. A team of authors and lecturers prepared the curriculum which included work in Python library for 2D Pygame graphics, and the male and female participants completed their acquired knowledge by their independently made projects. In addition to the intensive work, they could enjoy diverse extracurricular activities. Among others, we organized a visit to the Special Nature Reserve of Zasavica for the male and female participants, a guided tour of Sremska Mitrovica, including a visit to the Emperor's Palace and to the Museum of Srem, the lectures on 3D print and on the work in the gaming industry provided by the professionals coming from the IT industry, a knowledge quiz, a workshop in which they created projects of a smaller scope by using the Microbit and tested their engineering skills by making bridges by using sticks and so on.

The organized activities contribute to balancing gender representation in enrolment in study programs, which has been corroborated by the official data on the completed enrolment. According to the official statistical data maintained by the Statistical Office of the Republic of Serbia, in the academic year of 2023/2024, in the first year of the basic study courses, 47,946 students were enrolled in the Republic of Serbia in all the higher education institutions, and of the total number of first year students, 57.9 % (27,747) are females, which is indicative of the continuous growth trend in comparison with the academic year of 2013/2014, when the same percentage was 53.3 %. In addition to that, the share of the female students in the number of students financed from the national budget is growing as well, and thus, that percentage has risen from 55.8 % to 59.7 %. When speaking about the enrolment at the study programs in individual fields, in which a lower representation of females has been noted, in the period from the academic year of 2015/2016 to 2022/2023, an increase in the number of female students has been noted, and thus, in the individual educational fields of:

- Information and Communications Technologies (ICT), a rise from 25.7 % to 30.7 %,
- Engineering, manufacture and civil engineering, rise from 35.7 % to 41.9 %, and
- Agriculture, forestry, fisheries and veterinary, a rise from 47.5 % to 51.6 %.

In the field of higher education, the Law on Higher Education prescribes in Article 16 that the Management Board of the National Accreditation Body shall have nine members, which shall be appointed by the National Assembly, taking account of the representation of individuals of both the sexes, and in Article 20 that the members of the Accreditation Commission shall be elected by the management board of the National Accreditation Body, based on a public call, by taking account of the representation of the individuals of both the sexes, as well as of the representation of educational and scientific, and/or

educational and artistic fields.

Article 62 of the said Law prescribes that the composition of the councils of the higher education institutions where the founder of the higher education institution concerned is the Republic, the representatives of the founder shall be appointed by the Government, among the prominent individuals in the fields of science, culture, education, arts and economy, by taking account of the representation of individuals of both the sexes.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

Challenges:

- Improvement of competences of the teachers and expert associates for their work on the promotion of gender equality
- Negative representation of topics related to gender equality in the media

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

The Ministry of Education take part in the work of the National Coalition to end child marriage. So far, the Coalition has realized the campaign entitled "Childhood, not marriage", with the aim of turning the attention of the general public and of the institutions to the problem of child marriage. The campaign entitled "Childhood, not marriage" deals, among other issues, with education and brings the stories of young Roma females who talked about their experiences and attitudes on early entering into marriage, by promoting the importance of education (17) Detinjstvo, ne brak! - YouTube.

The Family Law (Official Gazette of the RS, No. 18/05, 72/11, 6/15) is currently being amended and supplemented. A proposal has been forwarded to delete the following paragraph (2) from Article 23 of the current version of the Family Law which reads as follows: "(2) The court may, due to the duly justified reasons, permit entering into marriage to an underage person who has turned 16, and who has reached the physical and spiritual maturity required for exercising the rights and duties in marriage."

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

☐ Legislation provides for the right to education of national minorities

☐ Teachers are trained on intercultural education

²²

Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

- o Policy measures aim to enhance the right to education of national minorities
 - o Policy elaboration includes consultations with local communities
 - o The right to carry out their own educational activities is legally guaranteed for national minorities
 - o Educational standards are established for educational institutions run by national minorities
 - o Positive or affirmative action measures are provided for national minorities
 - o Financial incentives and fellowships are provided for national minorities
 - o Other²³:
- o Teachers are trained to combat stigmatisation²⁴
 - o Multilingual and intercultural education are supported
 - o Native language instruction is ensured for national minorities
 - o Adapting curricula and teaching and learning methods to their needs for national minorities
 - o Curricula are rid of all stereotypes²⁵ and bias

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- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Effects of the support measures on the improvement of education of the members of Roma national minority and reduction of gap in relation to the pupils/students who are members of the majority population group

The Ministry of Education particularly point out to the results achieved in education of children of the Roma nationality, as one of the most vulnerable social groups. Over the past five years, through the application of various support measures, the number of children of the Roma nationality attending the Preparatory Preschool Program (PPP) has been increased by 20 %, and the percentage of Roma children enrolled in primary schools rose by 15 %. Dropping out from the educational system has continuously been reduced, and the rate of the high school graduates has increased by 20 %. We should in particular highlight here that the percentage of Roma girls in high schools has been increased by 12 %. The pedagogical assistants (PA), who can speak the Roma language and who provide support to the children and pupils/students of Roma nationality both in the primary and in the secondary schools have significantly contributed to the achievement of these results, and there are currently 272 of these assistants within the system (they are financed from the local and from the Republic levels), 231 of which are engaged in primary schools, 9 in secondary schools, while 32 pedagogical assistants are engaged in the preschool institutions. For the past three school years (2021/2022, 2022/2023 and 2023/2024), the Ministry hired 47 additional PAs. For all the PAs, attending of remote training has been provided free of charge (the training financed from the budget of the Ministry of Education), “Training for pedagogical assistants for children and students of Roma nationality in need of additional support in education”. The training is available on the National Educational Portal and it is available to all the PAs at the time of their hiring, and among the topics covered by the training are the measures for identification and prevention of discrimination in education. In addition to that, IT equipment has been provided, computers for schools and lap top computers for the PAs, as a form of support to their work in schools and for their field work. Provision of scholarships is a continuous systemic support measure for the pre-university education of Roma. Over the past nine school years, the total of 8,737 scholarships has been awarded to the Roma students, 65 % of which are female students. Among the measures aimed at preventing and combating discrimination of the Roma children in education is the available option to attend the elective program of *Roma Language with Elements of National Culture*, which is on average each year attended by 2,600 to 3,000 pupils in 68 to 72 primary schools, and these classes are provided by 60 teachers of the subject of Roma Language with Elements of National Culture. In the Catalogue of Textbooks in the languages of national minorities, textbooks are included for the initial 6 grades of the primary school, and preparatory work on the textbooks for the seventh and eighth grades is in progress. By hiring of the pedagogical assistants who are providing support to children and pupils

²³ Please see: [UNESCO report](#) ‘The right to education of minorities: Overview of States’ measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

of the Roma nationality and of the teachers who are teaching Roma language a contribution is made to increased employment of the members of Roma national community.

Right to education in mother tongue which a language of a national minority group

The system of education of the Republic of Serbia is additionally characterised by the exercise of the right to education in mother tongue which is provided for the members of national minorities in our country. The entire education in their mother tongue, inclusive of the mandatory subject of *Serbian as Non-Native Language*, is attended by the members of 8 national minorities: the Albanian national minority, the Bosnian, Bulgarian, Hungarian, Romanian, Ruthenian, Slovak and Croatian national minorities. In the school year of 2023/2024, the primary education in their mother tongue which is a language of a national minority is attended by 26,488 pupils, and the secondary education of the same kind is attended by 11,860 students. The pupils and students who are members of national minorities and who are attending classes in Serbian language, can attend 16 elective programs of Mother Tongue/Speech with elements of national culture: Hungarian language, Bosnian language, Roma language, Romanian language, Slovak language, Bulgarian language, Croatian language, Ruthenian language, Bunjevac language, Vlach speck, Macedonian language, Ukrainian language, Czech language, Albanian language, German language and Slovenian language. In the current school year of 2023/2024, this option has been exercised by 14,438 students. Bilingual education is provided in one elementary school in Bulgarian and Serbian languages with 269 pupils. Education in languages of national minorities is characterized by continuity of attendance and in percentages, it makes almost 6% of our pupils' population and/or 52,786 pupils/students (38,348 in elementary and secondary schools, and 14,438 of students who are attending classes of Mother tongue/speech with elements of national culture). More than 3,100 teachers provide all the classes in one of 8 languages of national minorities. To the pupils/students attending all the classes in one of eight national minority languages (Albanian, Bosnian, Bulgarian, Hungarian, Ruthenian, Romanian, Slovak and Croatian languages), as well as the pupils/students who are members of national minority groups who are attending classes in Serbian and who additionally attend the elective program of *Mother Tongue/Speech with elements of national culture*, the total of 982 textbook units have been made available, 639 of which have been published under the reformed teaching programs (<https://mpn.gov.rs/wp-content/uploads/2022/03/Katalog-udzbenika-na-jezicima-nacionalnih-manjina.pdf>). It should be noted here that the Ministry of Education hold regular working meetings with the national councils of the national minorities relating to the improvement of education in national minority languages. Within these meetings, the representatives of the national minority councils are being continuously reminded of all the models and available options for acquiring education in national minority languages, as well as of the legal powers available to the national minority councils in relation to education. The counsellors who are external associates for education in national minority languages are also one of the systemic and continuous support measures for education of national minority groups. With the aim of promoting the education in languages of national minorities, 20 counsellors/external associates are hired each school year to work on the improvement of quality of teaching in national minority languages. Support to national minority education is additionally provided through textbooks in minority languages from the Free Textbook Program. In each school year, the number of textbook units in this program in the eight languages of national minorities rises, from 62,452 (in 2021/2022), 64,689 (in 2022/2023) to 72,357 (in 2023/2024). Textbooks in national minority languages from this Program have also been provided for the following school year of 2024/2025. In the field of education in national minority languages in the new Catalogue, as well as in the Catalogue that is published by the Pedagogical Institute of Vojvodina, the total of 85 programs in national minority languages have been accredited. In the course of 2022 and 2023, 58 programs were realized for 8,745 attendants (1,321 males and 7,424 females). In addition to that, in 2023 and 2024, five training courses were organized for principals and expert associates in schools on the topic of promotion of right to education of the Roma children, which were attended by the total of 220 participants. Dual education in national minority languages – In the school year of 2022/2023, 27 students were enrolled to attend the dual profiles in national minority languages, 12 in Hungarian and 15 in Bosnian. In the school year of 2023/2024, 40 enrolled to attend the dual profiles, 18 in Hungarian and 22 in Bosnian languages.

Article 11 of the Law on Higher Education prescribes that where teaching is provided in a language of a national minority in its entirety or in a part thereof within the higher education, the representative of the national council of the national minority concerned shall take part in the work of the National Higher Education Council, with the right to take part in the decision-making, on the issues of importance for the provision of teaching in the national minority language concerned.

Article 62 of the same Law provides that in a higher education institution founded by the Republic, in which teaching is provided in its entirety or in a part thereof in a national minority language, the national council of the national minority concerned shall provide opinion on the candidates proposed to be council members of the given higher education institution. In addition to that, in the higher education institution founded by the Republic, in which teaching is provided in its entirety or in a part thereof in a national minority language, the national minority council shall provide opinion on the candidates proposed to be members of the

management body of the higher education institution.

The same Law, in Article 101, prescribes that a student of a higher education institution is entitled to education in the national minority language, in accordance with law and accredited study program.

Additional professional training for the staff members in the system of education and education on/for human rights

In addition to the continuous improvement the legal regulations in the field of protection from violence and discrimination in the system of education and upbringing, the Ministry of Education is dedicating intensive efforts to the improvement of competences of the staff working in educational institutions for efficient actions in cases of discriminatory behaviour with the aim of providing timely reactions and mitigating the negative consequences. The Law on Fundamentals of the System of Education and Upbringing prescribes the additional professional training and professional development of teachers, preschool teachers and expert assistants (Article 55). In addition to that, the field of additional professional training is regulated by the Rulebook on permanent professional training and advancement to the titles of teacher, preschool teacher and expert associates (Official Gazette of the RS, number 109/2021). The priority fields for the period of three years, the forms, programs and the method of additional professional training, acquiring of knowledge and the form of certificate of completed program are prescribed by the minister of education. Among the competences which are prescribed for additional professional training and professional development of teachers, preschool teachers and expert associates are the K4 competences related to the competences for communication and cooperation. Among the priority fields is the **P4** field, which includes: *Strengthening the role of the educational institutions in upbringing through development of programs for the prevention of violence, discrimination, abuse and neglect*. Within their additional professional training, teachers and expert associates are obliged to attend the training courses focusing on prevention of and protection from discrimination, prevention of and protection from violence, abuse and neglect, constructive conflict resolution, on the topic of non-violent communication, application of the Reference Framework for Democratic Culture of the CoE, on the topic of tolerance development, identification of stereotypes and prejudice and on prevention of hate speech. In addition to that, the Catalogue of Programs of Permanent Professional Training for Teachers, Preschool Teachers and Expert Associates for the School Years of 2022/2023, 2023/2024 and 2024/2025, at <https://zuov-katalog.rs/>, includes seven accredited programs on the topic of interculturality, five programs on the topic of gender equality, and the topic of protection from discrimination is represented by 20 programs. In the period 2022-2024, training courses dealing with the topic of protection from discrimination were attended by 1,000 staff members in the educational system, the training courses on the topic of interculturality were attended by 200 participants, and the topic of gender equality attracted 100 participants. It should be particularly noted here that there are 5 accredited training courses on the topics specifically dealing with support to pupils/students of the Roma nationality in education and those that are dedicated to improving the staff members' competences in education against racism and discrimination on the List of Training Courses of Public Interest. In the course of 2023 and 2024, five training courses were realized with the total of 220 participants. Bearing in mind that dropping out of the educational system is a significant obstacle during schooling, specifically for the pupils/students of the Roma nationality, the Ministry of Education established a system for early identification and reaction with the aim of preventing dropping out of school, and instructions were created for preventing early leaving of school. In the course of 2023, 19 training courses were organized for 482 participants from 47 schools, which were entitled "Training for Planning, Implementation and Monitoring of Measures Aimed at Preventing Student Dropping Out", which was accredited as a training program of public interest, and the realization of which was financed from the budget of the Ministry of Education. So far, the total of 2,580 staff members from 291 primary and secondary schools have attended this program. Education on human rights and for human rights is an integral part of the system of education and upbringing, both in the legislative sense, and through disciplinary and interdisciplinary competences, outcomes and additional professional training of the staff members in the educational system. All the teachers are obliged to link the outcomes and contents of their respective subjects in such a manner as to encourage development of interdisciplinary competences among pupils/students, such as the such as the *Responsible Participation in a Democratic Society*. Through the strengthening of competences for democratic culture in schools, children and pupils/students, and their parents as well, are encouraged to take an active part in the society, development of the concept of rights and responsibilities. A particularly important segment is the development of critical thinking among the students. Thus, the measures aimed at preventing the discriminatory behaviours are an important part of the efforts to achieve quality and accessible education for all. Respecting the democratic procedures, responsible, humane and tolerant behaviour in society, sensitivity to social injustice, cooperation and team work are some of the outcomes which are connected to human rights, and which are included in the teaching and learning programs. Since 2022, the Ministry of Education has established a network of counsellors who are external associates for democratic culture in schools, and 20 counsellors have been appointed by the Ministry (the staff members in schools in the territories of all the school administrations) who are financed by the Ministry of Education, and who are providing support to all the schools and informing them of the methods for implementation of competences for democratic culture (CDC). On the level of a school year, at least 1,200 teachers and expert associates improve and promote their knowledge and skills.

Continuous efforts are dedicated to strengthening staff members' competences for inclusive education, and in the course of 2023 only, 8,300 staff members in the educational system were covered by different training programs.

The Ministry of Education dedicates special attention to the improvement of staff members' competences for strengthening the educational role of schools and the realisation of preventive activities with pupils and parents, and the latest support to the staff members is included in the guide entitled "Upbringing for wellbeing and comprehensive development of children". In the course of 2022 and 2023, more than 42,300 staff members were strengthened in educational institutions for acting in cases of suspected or identified violence and/or discrimination, but also in realisation of preventive activities with the aim of raising pupils' awareness for identification and timely reacting to different forms of cases involving violence. Realising the importance of the resource, but also the importance of the exchange of experiences of the staff members in the educational system, the Ministry, in cooperation with the Institute for Improvement of Education, create the online portals that cover the topics such as the responsible behaviour to health, antidiscrimination and pupils' safety. On the website of the Ministry of Education, resources of importance for competence strengthening in education **in the field of prevention of and protection from discrimination** are provided, which were created within the Ministry's cooperation with the civil society organisations with the support from the international donors: "A guide through prevention and response to discrimination for the staff members in educational institutions – From Identification to Action"; "Brochure for Parents – Prevention, Protection and Action in cases of discrimination in the field of education"; "Brochure for Parents – Prevention, Protection and Action in cases of discrimination in the field of education", <https://prosveta.gov.rs/kategorija/publikacije/page/2/>. The "Guide to prevention of segregation in educational institutions and undertaking desegregation measures" should be particularly highlighted here as well, which is provided on the website of the Ministry of Education at <https://prosveta.gov.rs/wp-content/uploads/2022/12/vodic-za-spreccavanje-sagregacije.pdf> and which is an activity that completes the resources in education for application of legislation serving to achieve just and non-discriminatory education and society as a whole. Some other publications should also be highlighted here, which were also made available on the website of the Ministry of Education, and specifically: the Guide for staff members in primary and secondary educational institutions, "Upbringing for wellbeing and comprehensive children's development", the Guide for the promotion of democratic culture in schools, the Guidelines for the promotion of democratic culture: a package of materials for mentoring schools, at <https://prosveta.gov.rs/kategorija/publikacije/>.

Within the Project "Together and Safely through Childhood", which is realized by the Ministry of Education in cooperation with the Ministry of Interior, Commissioner for Protection of Equality and other project partners, workshops were organized which were entitled "Peer violence prevention in physical and virtual environments" in all the primary schools. During the interactive workshops, the pupils were provided with opportunities to improve their knowledge of the forms of violence and discrimination, and of the identification and reaction methods. Their knowledge before and after the realized activities were assessed through the Kahoot quiz. The quiz questions were related to identification and reaction methods in the cases involving violence and discrimination. Almost 4,600 pupils of primary schools took part in the said activities.

On the National Platform "I protect you", training courses for staff members, parents and children are available which are dealing with the topics in the field of protection from violence, discrimination, identification, reaction methods and provision of support in cases involving violence. From the very beginning of operation of the National Platform, the Ministry of Education was closely involved in the creation of informational and educational contents, as well as in the creation of the contents of the training courses. Currently, there are 15 training courses that have been made available on the National Platform, which are dedicated to the above mentioned topics. Among the training courses available on the National Platform are: "Support to children from vulnerable social groups in cases of discrimination, violence, abuse and neglect" – a training course for parents (447 parents have so far attended the training course); "What a parent should do when they learn of a case of violence in school" – a training course for parents (4,907 parents have so far attended the training course); "What can you do when you learn that your boy or girl friend suffers violence" – a training course for pupils (12,797 of them have so far attended the training).

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Challenges:

- The demographic data on the Serbian population and the reduction of number of school children, which lead to a smaller number of pupils/students in classes and potentially to a smaller number of pupils/students attending classes in national minority languages.
- According to data of the Republic of Serbia Statistical Office, which is indicative of a downward trend of the

overall population number in the Republic of Serbia, which can potentially lead to a shortage of staff members in the field of higher education.

Indigenous people:

- o Legislation provides for the right to education of indigenous people
 - o Policy measures aim to enhance the right to education of indigenous people
 - o Policy elaboration includes consultations with local communities
 - o The right to carry out their own educational activities is legally guaranteed for indigenous people
 - o Educational standards are established for educational institutions run by indigenous people
 - o Positive or affirmative action measures are provided for indigenous people
 - o Other:
- o Financial incentives and fellowships are provided for indigenous people
 - o Teachers are trained on intercultural education
 - o Teachers are trained to combat stigmatisation²⁶
 - o Multilingual and intercultural education are supported
 - o Native language instruction is ensured
 - o Adapting curricula and teaching and learning methods to their needs for indigenous people
 - o Curricula are rid of all stereotypes²⁷ and bias

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- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

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People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- o Legislation provides for their right to education
 - o Policy measures aim to enhance their right to education
 - o Inclusion in mainstream schools is ensured
 - o Positive or affirmative action measures are provided for
 - o All administrative barriers to access education are removed
- o Financial incentives and fellowships are provided for
 - o Auxiliary assistance is provided
 - o Multiple and flexible learning pathways³¹ are provided
 - o Curricula are rid of all stereotypes³² and bias

²⁶ Supra note 15.

²⁷ Supra note 16.

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

- o Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers²⁹ are provided for
 - o Teachers are specifically trained to ensure their inclusion
 - o Teachers are trained to combat stigmatisation³⁰
 - o Other:
- o Accelerated learning programmes are provided
 - o Non-formal and/or alternative education programmes are provided
 - o Language classes to newcomers are provided for
 - o Multilingualism and intercultural education are encouraged

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- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Rights of migrants and refugees to education is respected in the Republic of Serbia

The openness and flexibility of the educational system in the Republic of Serbia have been demonstrated again upon the onset of the migrant crisis. By focusing on the best interest of the child, more than 85 % of the migrants, asylum seekers and refugees from Ukraine have been covered by the system of education. By application of the affirmative approach, children from vulnerable social groups, which by all means include the pupils/students who are migrants, refugees and/or asylum seekers, are enrolled in elementary school, without evidence of their parents' domicile or the required documentation, upon presentation of evidence of the completed medical examination for the child. The refugees and migrant persons are enrolled in secondary schools at the secondary school profiles that have remaining vacancies for enrolment following the completed second enrolment round or (providing that they have mastered Serbian language) upon successful taking of the final examination. Translation of the educational materials has been provided into the mother tongues of the migrants and refugees from Ukraine. Attendance of elementary school has been improved, since attending of elementary school is mandatory in the Republic of Serbia, and the approach to secondary education is affirmative and on the voluntary basis. Some of the results achieved in the field of migrant education is listed here: more than 10,000 supplemental classes have been organized for learning Serbian language; continuous peer support provided for learning; virtual artistic exhibitions have been organized; migrants have been included in musical, performing arts, visual arts, IT clubs; significant dates have been marked; more than 500 snacks and pieces of clothes and footwear have been provided; workshops have been organized with all the students on the following topics: interculturality, tolerance, comradeship/friendship, getting acquainted with the culture of the migrant students, antidiscrimination, non-violent communication, empathy development and provision of support to the migrant students; textbooks have been provided along with the school materials and sets of training outfits for physical education classes. As a support measure to the promotion of integration of migrants and of other vulnerable social groups as well in the educational system, the elective subject Serbian as a Foreign Language has been introduced in the curriculum, which is available to the students who cannot speak the language in which teaching is provided (the readmission returnees, migrants, refugees, foreign nationals). Useful materials for teachers are provided on the National Educational Portal of the Institute for the Improvement of Education, on a separate website dedicated to the subject of Serbian as Foreign Language. Resources have been regularly supplemented, at <https://zuov.gov.rs/srpski-kaostrani-jezik/>, and a significant place is dedicated to the improved Manual "Serbian as Foreign Language", as well as to the new manual entitled "Serbian as Foreign Language – instructive methodological and didactical teachers' manual, available at <https://zuov.gov.rs/metodicko-instruktivni-prirucnik-za-nastavnike-srpski-kaostrani-jezik/>. The purpose of these materials is to provide support in instruction and teaching methodology to teachers in the creation and promotion of positive emotional atmosphere for learning, in use of topics for didactical purposes and in the use of adequate methodological procedures, which are impacting lowering of the affective filter which can be an obstacle in language learning and teaching for the members of vulnerable groups, which is the basic precondition for their full emotional, personal and academic development.

Accessibility of the right to education in the Republic of Serbia is guaranteed to all the children. By application of the affirmative

³¹ Supra note 13

³² Supra note 16.

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

approach, children from vulnerable social groups, which by all means include the pupils/students who are migrants, refugees and/or asylum seekers, are enrolled in elementary school, without evidence of their parents' domicile or the required documentation, upon presentation of evidence of the completed medical examination for the child. The refugees and migrant persons are enrolled in secondary schools at the secondary school profiles that have remaining vacancies for enrolment following the completed second enrolment round or (providing that they have mastered Serbian language) upon successful taking of the final examination. Attendance of elementary school has been improved, since attending of elementary school is mandatory in the Republic of Serbia, and the approach to secondary education is affirmative and on the voluntary basis. On average, the coverage of the migrant children, children who are asylum seekers and refugees by the elementary education in the school year of 2023/2024 ranges, just like in the previous years, from 85 % to 89 %, and the coverage in secondary school (which is not mandatory in Serbia) is, just like in the previous years, between 15 % and 30 %. Due to the language barrier, translation of the educational materials has been provided into the mother tongues of the migrant pupils: into Arabic and Farsi, which has proven to be a very important form of support to migrant education. With the arrival of refugees from Ukraine, the Ministry of Education has enabled inclusion of the preschool and school age children in the system of education, as well as the translation of educational materials, in addition to the Arabic and Farsi languages, into Ukrainian. The translated materials (in addition to the materials in Serbian language) are made available on the website at www.remis.rs and they are available to all the schools. Owing to the fact that the Ukrainian language is studied within our system as one of the minority languages through the elective educational program, the Ministry of Education, in cooperation with the National Council of the Ukrainian National Minority, translated a leaflet on the system of education and upbringing in the Republic of Serbia into Ukrainian. In addition to that, with the aim of improving the quality and accessibility of education, 50 tablet computers were provided to improve availability of distance learning for the migrant students provided with accommodation in migrant and asylum centres. As a support to the education system, since 2018 mentors have been continuously hired to provide support to schools attended by the migrant pupils/students. Monitoring of availability and quality of migrant education is among the tasks of the mentors. According to mentor data, at least 48 % of migrant students attended 22 classes of regular teaching + 2 classes of supplemental teaching (primarily aimed at learning Serbian language) on the weekly level. Other migrant, asylum seeking and refugee students, primarily those staying in Serbia for more than one year, attended all the classes, between 22 and 28 classes a week, depending on the grade. In addition to the regular classes, more than 82 % students from the migrant population have been directly included in the extracurricular activities. For the migrant students who are leaving Serbia, and who were included in the education system, school reports are prepared (in Serbian and English languages), which include the level of educational competences achieved by the migrant student during education attended in Serbia, which serves as a kind of an education passport. In 2023, the total of 50 school reports were provided for the students who left Serbia. The percentage of migrant, asylum seeking and refugee students provided with additional support in education by the teachers and expert associates in schools in 2023 (the school years of 2022/2023 and 2023/2024) is 95 %. In 2023, 80 % (52 % of girls, 48 % boys) of pupils from the migrant population group mastered the instruction language within the educational system to such a degree that they can follow the teaching. Over the past two school years, according to our estimate, at least 22 % of pupils from the migrant population group, primarily those who remained in the educational system for a period longer than one year, have mastered very well the instruction language.

Bearing in mind that Article 1 of the Constitution of the Republic of Serbia, which prescribes that the Republic of Serbia is the state of the Serbian people and all the citizens who live in it, based on the rule of law and social justice, principles of civil democracy, human and minority rights and freedoms, and affiliation to the European principles and values, and Article 17 which prescribes that the foreigners, in accordance with the international treaties, shall have all the rights in the Republic of Serbia which are guaranteed by the Constitution and law, other than the rights to which only the citizens of the Republic of Serbia are entitled under the Constitution and law, Article 18 which prescribes that the human and minority rights guaranteed by the Constitution shall be applied directly, and Article 71 which prescribes that everyone shall have the right to education, that all citizens shall have access, under equal conditions, to higher education, the affirmative measures provide that the foreign nationals with the migrant/asylum seekers' status are enrolled in the first year of study courses under the same conditions as those applicable to the nationals of the Republic of Serbia and when submitting the application and the prescribed documentation for enrolment into a study course, the candidate who is a foreign national with the migrant/asylum seeker's status needs to additionally submit to the higher education institution the relevant act issued by the competent authority whereby the migrant/asylum seeker's status is determined.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

The internally displaced persons and refugees have the same status as the other participants in the system.

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

Challenges:

- The Republic of Serbia is not a coveted destination for migrants. Due to that, the students who are migrants, asylum seekers and refugees are staying in Serbia for only a relatively short period of time, on average for 3 to 6 months, and only rarely for a period of several years. The turnover of migrant students who passed through and who are still passing through our educational system is high.
- Mastering the teaching language;
- The living conditions in refugee and asylum centres.

People with disabilities:

- | | |
|---|---|
| <ul style="list-style-type: none">o Legislation provides for their right to educationo Policy measures aim to enhance their right to educationo Inclusion in mainstream schools is ensuredo Special schools are used as resource centers to inclusive schoolso Positive or affirmative action measures are providedo Financial incentives and fellowships are providedo Other | <ul style="list-style-type: none">o Mainstream teachers are specifically trained on disabilitieso Teachers are trained to combat stigmatisation³³o Auxiliary assistance is providedo Curricula and teaching and learning methods are adaptedo Curricula are rid of all stereotypes³⁴ and biaso Education infrastructure and learning materials are adapted |
|---|---|

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

By applying and developing COR 4 in practice: Quality education – Provide inclusive and fair quality education and promote the possibility of life-long learning for all, the Ministry of Education contribute to the improvement of quality and accessibility of education for each child, guided by the best interest of the child, with the special focus on the vulnerable social groups. The development of a system of additional support to children, pupils/students and adult learners imply interdepartmental cooperation that was most directly established by means of the Law on Fundamentals of System of Education and Upbringing from 2009, when the Interdepartmental Commission (IDC) was introduced. The Interdepartmental Commission perform assessments of the needs of a child, pupil/student and/or an adult learner for additional educational, healthcare and social support, i.e. within their Opinion, they include the types of support required for the child, pupil/student and/or adult learner for their inclusion in education and life in the community.

Establishing and operation of the IDC were prescribed by Article 77 of the Law on Fundamentals of System of Education and Upbringing (Official Gazette of the RS, No. 88/2017, 27/2018 – other law, 10/2019, 27/2018 – other law, 6/2020, 129/2021 and 92/2023). Within the educational system, in accordance with the general principle of education and

³³ Supra note 15.

³⁴ Supra note 16.

upbringing which guarantees “equality and availability of exercising of the right to education and upbringing based on social justice and the principle of equal opportunities without discrimination“, and in accordance with Article 3, paragraph 3 of the Law which reads: “Persons with developmental impairments and disabilities shall have the right to education and upbringing taking into account their educational needs and needs for upbringing in the system of education and upbringing, with additional individual and/or group support in teaching and learning or in a special group for upbringing or in schools, in accordance with this Law and a special law”, the following measures of additional support to children and pupils/students from vulnerable social groups are being implemented:

The support measure for quality inclusive education and active participation of children/students in the system of education

- Adaptation of teaching, individualisation and individual educational plans (IEP1, IEP2 and IEP3),
- The individual educational plans can comprise the transition plan and a dropping out prevention plan,
- Remote teaching; Home teaching; Teaching for pupils/student undergoing a prolonged home and/or hospital treatment,
- Supplemental teaching; Additional teaching,
- Partnership with the families and high participation of parents/guardians in the decision making process concerning education,
- The use of assistive technologies,
- Cooperation between schools for pupils with developmental disabilities and institutions for regular education and upbringing,
- Teams have been established on the level of the entire school which are tasked with the IE, provision of additional support, prevention of violence and discrimination, professional orientation and career guidance,
- Inclusive education has been recognized as one of the priorities for additional professional training. Training courses for competence strengthening for IE are also included in the list of programs of public interest, as well as in the Catalogue of programs for additional professional training for the staff members in education,
- The Rulebook on competences for teaching profession – Competences for support to pupil’s personality development,
- The minimum teacher’s education has been defined in the pedagogical-psychological-methodological fields (36 credits),
- The quality standards for educational institutions include the indicators of inclusiveness,
- Improved accessibility of educational institutions,
- Prescribe priority enrolment of children from vulnerable social groups in preschool upbringing and education,
- Legally introduced diversification of program offer of the preschool institutions with the aim of increasing the coverage of children from vulnerable social groups by the preschool upbringing and education,
- Prescribed unconditional enrolment of children in elementary schools,
- Regulated enrolment method for children older than 7.5 years at elementary school,
- Introduced practice of adaptation of the final, matriculation and entrance examinations,
- Affirmative measures for enrolment of pupils in secondary schools and for enrolment of students at higher education

institutions are implemented,

- Compensation of the costs of stay in the preschool institutions,
- Defined obligations of educational institutions in the prevention of students' dropping out of schools,
- Free transportation for children/students and their assistants; meals, accommodation in students' homes, free textbooks for elementary school pupils, student credits and scholarships,
- Free adapted textbooks in Braille, as well as those with adapted fonts/formats (various electronic formats); textbooks in electronic format in Serbian sign language for the subject of Serbian Language for the first and second grades of elementary school.

Among the results whereby innovative approaches are introduced in the field of inclusive education is establishing of 13 resource centres for support to inclusive education. Through various activities of the resource centres, efficiency and effectiveness of the additional support services in education are increased, and expert, effective and timely support to the teachers, children and pupils/students with developmental disabilities and their parents is made available. By doing that, inclusion of children and young people from the vulnerable social groups in quality inclusive education is supported, with a special focus on application of assistive technologies. In the period 2021 to 2024, 5,371 children were covered by the provision of additional support by the resource centres. The program of free textbook provision is also a significant support measure for the pupils/students with developmental impairments and disabilities. By applying that program for the school year of 2021/22, 2,622 adapted textbook units were provided, for the school year of 2022/23 2,593 adapted textbook units were provided, and for the school year of 2023/24, 2,313 textbook units were provided which were adapted for the pupils/students with developmental impairments and disabilities. Some of the challenges faced in the provision of and approach to inclusive education include insufficiently developed interdepartmental cooperation on the national and local levels, insufficient capacities on the local level for implementation and monitoring of inclusive education, as well as the challenges faced in the programs for initial education of teachers in Serbia. The results of a series of activities aimed at supporting the children with developmental impairments and disabilities whereby inclusive education is promoted as well include: increasing the educational coverage of children and pupils/students; increasing the number of students from the vulnerable groups on the higher levels of education; increasing the number of students educated according to the individual educational plans (IEP) in the regular schools coupled with a downward trend for the number of pupils/students in the schools for children with developmental impairments and disabilities. Within the development of inclusive education, as the support to schools, 37 advisors were hired as external associates.

In the domain of higher education, the Ministry of Education makes a contribution to the improvement of quality and availability of higher education with a special focus on the vulnerable social groups. By applying the principle of inclusive education in the Republic of Serbia, the higher education institutions are realizing various support measures, such as: the affirmative measures for enrolment in higher education institutions, scholarships for students, student credits, as well as other measures.

The Law on Higher Education, in Article 96, prescribes that the obligations of the higher education institutions in respect of the method of organisation and the time of provision of the forms of studies shall be regulated by the general act of the higher education institution, as well as the obligation that, in accordance with its capabilities, the higher education institution shall provide conditions for the students with disabilities, that the higher education institution may organize studies that can be attended while working for the students who are employed or who due to some other reasons cannot regularly attend lectures, and that the more detailed conditions and methods of realisation of the remote study programs shall be regulated by the general act of the higher education institution.

The Free Textbooks Program is also a significant support measure intended to the elementary school pupils, and specifically to the pupils from the socially/financially disadvantaged families (recipients of the monetary social aid), pupils with developmental impairments and disabilities, elementary school pupils who are the third or any subsequently born child in the family, within the system. For the school year of 2022/2023, free textbooks were provided for 88,493 pupils, i.e. for 16.5 % pupils. Free textbooks were also provided for the current school year of 2023/2024, the total of 777,466 textbook units. According to our estimates, a significant portion of this measure is support provided to the pupils from the Roma families. Of the total number from the Free Textbook Program, 72,357 textbook units were also provided in the national minority languages.

In the school year of 2024/2025, the Ministry of Education continue to fund procurement of textbooks, which is, starting from the school year of 2009/2010, realized within the Project of “Procurement of textbooks and other teaching means for elementary school pupils”, based on relevant acts of the Government of the Republic of Serbia.

Starting from the estimated needs of the system of education and upbringing, and bearing in mind the budget means allocated for these purpose for the school year of 2024/2025, at the proposal of the Ministry, the Government has passed the *Decision on financing procurement of textbooks from the budget funds of the Republic of Serbia for the school year of 2024/2025* (Official Gazette of the RS, number 48/24), 05 number 401-4596/2024, dated 30 May 2024 (hereinafter referred to as: the Decision).

The Decision laid down that the subject matter of the procurement would be the textbooks that were to be used by the schools in classes in the school year of 2024/2025 and that the pupils from the families that were recipients of the monetary social aid, pupils with developmental impairments and disabilities from the socially/financially disadvantaged families (recipients of monetary social aid); pupils acquiring elementary school education and upbringing under individual educational plans, including the IEP 3; pupils with developmental impairments and disabilities, acquiring education under individual educational plans, who were in need of the adapted textbooks, as well as the pupils who were not acquiring education under individual educational plans and who required adaptations (enlarged font, Braille, electronic format); pupils from the families with three and more children who were in the system of education and upbringing, where the Decision stated that the said right should be exercised by the child/children who were elementary school pupils, should be entitled to allocation of these textbooks. Where more children from the families exercising the right to obtaining textbooks based on that criterion attend elementary schooling, the textbooks shall be allocated to the child/children who were the first ones to begin acquiring elementary education, irrespective of their order of birth; pupils from the families in which the holder of the parental care is only one parent, where the other parent died or is unknown; the pupils suffering from the rare diseases; pupils exercising the right to another person’s care and assistance, and the pupils of the first and second grade of elementary school who are deaf, and who need adapted textbooks in electronic format, with video contents in Serbian sign language, and specifically:

- (1) In the first elementary education cycle for the following subjects: mathematics, Serbian Language/Mother Tongue, World around Us, Nature and Society, and Foreign Language as the mandatory subject;
- (2) In the second elementary education cycle for the following subjects: mathematics, Serbian Language and Literature/Mother Tongue, first foreign language, Geography, History, Chemistry, Physics and Biology.

The total amount of the ordered textbook units for the school year of 2024/2025 is 894,191;

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Challenges:

- The holistic approach to the support to families with children with disabilities which includes support from the system of social and healthcare protection, both for the children and for their parents;
- Identification and monitoring of these persons in the system of higher education is made conditional upon the provision of their statements concerning the same.

Students from poor households:

- o Financial incentives and fellowships for school enrolment are provided
 - o Transport, meals and education material are subsidised or provided free of charge beyond compulsory education
 - o Positive or affirmative action measures are provided
 - o Other:
- o Teachers are trained to combat stigmatisation³⁵
 - o Curricula are rid of all stereotypes³⁶ and bias

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

In accordance with the constitutional principle that envisages that all the citizens shall be entitled to education and prescribes that all the citizens shall be entitled to access to higher education under the equal conditions, and that the Republic of Serbia shall enable the financially disadvantaged successful and talented students to attend free higher education, in compliance with law, a certain number of students has been envisaged to be enrolled at the institutions within the system of higher education to study financed from the national budget, provided that they are ranked within the budget quota defined by the Government decisions on the number of students to be enrolled in the first year of studies.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- o Prior to pre-primary education, ECCE services are free
- o ECCE services respect a child’s need for early cognitive and social development,

³⁵ Supra note 15.

³⁶ Supra note 16.

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- o Prior to pre-primary education, ECCE services are affordable foundational learning, responsive care, nutrition, health, safety, protection, and play.
- o ECCE services are accessible on a non-discriminatory basis

- Please elaborate further on the measures taken:

There is a tradition of integrated care, upbringing and education within the system of institutional preschool upbringing and education. The activity of the preschool institutions is a multifunctional one, and it includes, in addition to upbringing and education, as the primary function, feeding of the children, care and preventive-healthcare and social protection. The programs of educational work with children on the level of an ECCE group (the actual program) are developed based on the program concept – The Basis of the Early Childhood Care and Education Program. In 2018, in the Republic of Serbia, the new Program Basis was passed (with the symbolic title “The Take-Off Years”), which are focusing on support to child’s wellbeing and their comprehensive development. Among other things, the Program Basis highlights the importance of relationships as the trigger for children’s development and learning; the importance of space as an inspiring, stimulating environment for learning; the importance of play as a method for child to approach an activity, to creatively process and expand the experiences, build up the identity and relationships; integrated approach to learning – through the development of topics/projects with children.

Article 17 of the Law on Fundamentals of the System of Education and Upbringing (Official Gazette of the RS, No. 88/17, 27/18 – other law, 10/19, 6/20, 129/21 and 92/23) prescribes the obligation to enrol each child aged from five to six and a half years in an ECCE institution, in order to attend the preparatory preschool program. In accordance with Article 13 of the Law on Preschool Upbringing and Education (Official Gazette of the RS, No. 18/10, 101/17, 113/17 – other law, 10/19 and 129/21), the method and the procedure for enrolment of children in the ECCE institutions shall be regulated in more detail by the statute of the ECCE institution concerned, with the consent of the founder. The same Article of the Law prescribes that when a child is to be enrolled in an ECCE institution that is founded by the Republic of Serbia, an Autonomous Province or a local self-government unit, priority shall be given to the children from vulnerable groups.

The options for enrolment of children from the younger age groups (younger than the age for which attendance of the mandatory preparatory preschool program is prescribed) are conditional upon the capacities of the ECCE institution (spatial, staff-related, financial and technical) and enrolment of children is carried out in accordance with the provisions of the Rulebook on more detailed conditions for determining priorities for enrolment of children in preschool institutions (Official Gazette of the RS, No. 44/11) and the procedures passed by the ECCE institutions with the consent from their founders.

The act on the network of public ECCE institutions, whereby the number and the spatial distribution of the ECCE institutions are planned, is passed by the assembly of the local self-government unit, in accordance with the geographic, demographic, cultural, economic, ecological and other characteristics, all in accordance with the Regulation of the Republic of Serbia Government on the criteria for passing the act on the network on public ECCE institutions and the act on the network of public elementary schools (Official Gazette of the RS, number 21/2018). It is within the scope of competence of the local self-government unit to test, in cooperation with the ECCE institution, the needs of the children and of the families in the concrete local community, to map the children that have not been covered, to monitor the demographic trends and internal migrations and to plan sustainable solutions in respect of determining the ECCE institutions’ network in the territory under its jurisdiction.

On the central level, the Ministry of Education, in cooperation with the partner institutions and organisations, continuously support the realisation of measures and activities contributing to the realisation of strategic priorities (improvement of availability, fairness

and quality of preschool upbringing and education).

The Support to the Preschool Upbringing and Education Reform Project (the SUPER Project) was realized from the financial means of the European Union Instrument for Pre-Accession Assistance (IPA 14) in the period from March 2019 to 10 September 2021, with participation of professionals from 50 towns/municipalities and ECCE institutions in Serbia. Through the Project activities, professional support was provided to the local self-government units, in the domain of improvement of the strategic planning process of the preschool upbringing and education on the local level, promotion of the activity's importance and advocating it; strengthening of practitioners' professional competences for development programs of upbringing and educational work in accordance with the modern pedagogical approaches (through trainings, mentor support to institutions and development of professional resources and materials).

The Inclusive ECCE Upbringing and Education Project (financed from the loan granted by the International Bank for Reconstruction and Development) is the largest systemic project in the field of preschool upbringing and education and it is realized since 2017 (by November 2024). The activities within the 1st Project component are focused on the expansion of spatial capacities of the ECCE institutions with the aim of improving the availability of the ECCE upbringing and education for the children aged 3 to 5.5, in particular for the children from vulnerable social groups through construction of new, reconstruction, adaptation and/or repurposing of the available facilities and spaces in local communities for realisation of ECCE programs. Through the activities within the component 2 of the Project, which are aimed at improving the quality of the ECCE upbringing and education, support is provided to application of new ECCE Upbringing and Education Program Bases, improvement of initial education and professional development of the ECCE teachers, as well as to the improvement of the quality valuation system of the ECCE upbringing and education. Support to children and families, in particular from the vulnerable social groups, is provided through the activities within the component 3 of the Project, through the realisation of projects of the towns and municipalities (the Grants' Program) and communication campaign.

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

Preschool preparatory program (PPP) is the part of preschool education. PPP is compulsory for all children aged 5, 5 to 6,5 years. Attending PPP for 4 hours a day, in public preschools is free.

- ☐ Pre-primary education is **not** compulsory.
- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

The preschool preparatory program (PPP) lasts 4 hours a day, minimum 9 months in a year before elementary school (for all children aged 5,5 to 6,5). It is organized by preschool institutions, as well as by primary schools (verified for the program realisation). It is free of charge for parents (financed from the republic budget 4 hours a day, during the whole school year), when realised in public institutions. For children attending the Program in whole day duration, the fee for parents is reduced for the amount obtained from the republic budget. Some local self-governments (big cities such as Belgrade, Novi Sad etc.) have brought the decisions on free ECEC education for all enrolled children (from 6 months of age until the beginning of primary education).

□ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The funds for financing the activities of the public preschool institutions are provided from the budgets of the local self-government units, as well as from the Republic of Serbia budget. Among other things, Article 187 of the Law on Fundamentals of the System of Education and Upbringing prescribes that in the Republic of Serbia budget, funds shall be provided for: 1) the realisation of preparatory preschool program in the year preceding the beginning of schooling, of the duration of four hours a day, in the seat and outside of the seat of the ECCE institution; 2) realisation of the preschool program for work with children with developmental impairments and disabilities in the developmental group in the ECCE institution; 3) realisation of the preschool program for the work with children undergoing hospital treatment in the relevant healthcare institution, in the hospital group.

Article 189, paragraph 1, point 1) of the Law prescribes that in the budget of the local self-government unit funds shall be provided for the realisation of preschool education activity (half-daily and daily stay, meals, care and preventive protection of the children of preschool age) amounting to 80 % of the economic price per child, and in exceptional cases amounting to 100 % of the economic price per child where the local self-government unit has provided funds for those purposes, including the funds for salaries, contributions and other employee benefits in their entirety, social contributions payable by the employer, severance pays, as well as the aid for employees with the ECCE institutions, expenses of the preparatory preschool program other than those which are funded from the funds provided in the Republic of Serbia budget and other overhead expenses.

Article 50 of the Law on Preschool Upbringing and Education prescribes that the parent and/or another legal representative of the child shall take part in the provision of funds for the realisation of activity of the preschool institution, which is founded by the Republic of Serbia, an Autonomous Province or a local self-government unit, in compliance with the Law. The decision on the price amount of the parent's and/or another legal representative's participation shall be passed by the founder. The same Article of the Law prescribed that the children without parental care, children with developmental impairments and disabilities and children from financially disadvantaged families shall be exempt from the obligation to pay for the program in daily and half-daily stay, in compliance with the regulations governing financial support to families with children.

The Rulebook on the standards for determining the economic price of the preschool upbringing and education program in preschool institutions (Official Gazette of the RS, No. 87/2021) prescribes the standards based on which the competent local self-government authorities are to determine the economic price of the preschool upbringing and education program per a child in the preschool institutions founded by the Republic of Serbia, an Autonomous Province, or a local self-government unit. The Rulebook regulates in more detail the issues concerning determining the economic price of the program, the breakdown of the economic price of the program, the users' share in the economic price of the program, and other issues.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|----------------------------------|--|
| o Limited access | o Poor learning outcomes |
| o Issues of equity and inclusion | o Low number of professionally trained educators |
| o Poor quality programmes | o Lack of support to families |
| o Other: | |

- Please elaborate. Brief quantitative information may be added.

Despite indications based on data of the increase in the total coverage of children by the institutional preschool upbringing and education (the coverage of 47.45 % in 2014/2015; of 52.30 % in 2016/2017; 57.38 % in 2019/2020; 62.12 % in 2023/2024), significant challenges remain in respect of the provision of conditions for broader coverage of the children, meeting the families' needs and in accordance with the projected Sustainable Development Goals (Agenda 2030). The ECCE capacities are on the rise, but in order to achieve the strategic goals, it will be necessary to additionally expand the existing spatial capacities, and the network of ECCE institutions is characterized by unequal geographical distribution. Substantial differences are observable in respect of the ECCE capacities among individual municipalities with different levels of socio-economic development – in the economically more developed municipalities, ECCE facilities are more numerous and the average number of children per a facility is higher. In addition to that, there are significant differences in respect of the number of children in ECCE groups – that number is larger in cases of the facilities located in the administrative centres of the municipalities than in the populated areas located outside of the administrative centres. The improved legislative framework in the domain of realisation of various ECCE programs, forms and services with the aim of improving the quality of ECCE work, increasing the coverage of children, broadening diversity of program offer in compliance with the families' and children's needs and specificities of the local community still present challenges in application (of the organisational and financial nature). Realisation of the ECCE program of the whole-day duration (from 9 to 12 hours a day, which is matched to the needs of the working parent), is still predominant.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

6.5 (7.5) – 14.5 (15.5) years

- Is primary education compulsory and free of charge?

- o Primary education is compulsory
- o Primary education is **not** compulsory.
- o Primary education is free of charge.
- o Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies,

uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The Law on Fundamentals of the System of Education and Upbringing; the Law on Elementary Education and Upbringing;

- What challenges were encountered in realizing primary education?

- | | |
|----------------------------------|---|
| o Limited access | o Poor learning outcomes in: |
| o Issues of equity and inclusion | Foundation literacy |
| o High dropout rates | Numeracy |
| o Poor quality programmes | Social and emotional learning |
| o Other: | Others |
| | o Disparity in learning outcomes |
| | o Low number of professionally trained teachers |

- Please elaborate. Brief quantitative information may be added.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

In Serbia, there is only secondary education.

Without dividing it into lower and upper.

Enrolment 15 years

Duration 3 or 4 years

There are also the training programs for work provided in schools for the students with developmental impairments and disabilities of the duration of 2 years.

- Please provide the age of enrolment and duration of upper secondary education:

In Serbia, there is only secondary education.

Without dividing it into lower and upper.

Enrolment 15 years

Duration 3 or 4 years Duration 3 or 4 years

- ☐ Lower secondary education is compulsory.
- ☐ Lower secondary education is **not** compulsory.
- ☐ Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- ☐ Upper secondary education is compulsory.
- ☐ Upper secondary education is **not** compulsory.
- ☐ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Secondary education in Serbia is free of charge.

Students younger than 17 years of age can enrol in the first grade of secondary education as the full-time students and they do not pay any tuition fees. By way of exception, a person older than 17 years of age who completed the elementary education of the duration of eight years in the previous school year can be enrolled in the following school year in a secondary school as a full-time student and shall not pay any tuition fees either. Students older than 17 can be enrolled in secondary schools in the capacity of part-time students, and providing that they acquire their first qualification, they shall not pay any tuition fees.

Students who are attending secondary education in the capacity of a full-time student in a secondary school can in parallel attend schooling in the schools which are realising the secondary musical and ballet education programs. A full-time student attending an international matriculation program can in parallel attend a school program and/or a part of a school program for another educational profile of a gymnasium or some other educational profile, in the capacity of a full-time student.

A full-time student can in parallel attend a school program, and/or a part of a school program for another educational profile, as a part-time student, with the obligation to pay the fee for the actually incurred costs.

A person who has acquired secondary education, who wishes to attend requalification or additional qualification, to acquire specialist or master education shall pay the tuition fee. The persons who are undergoing requalification or getting additional qualifications due to some health-related reasons shall not pay any tuition fees. The tuition fee amount is determined by the Ministry of Education, according to the types of education and upbringing, where individual part-time students, due to their difficult financial and social situation, can be exempt from the obligation to pay the tuition fee, in order to achieve full equality in acquisition of education.

There are some indirect costs related to purchasing of textbooks, school materials and

the required uniform for individual educational profiles within secondary vocational education.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

As a rule, students complete the mandatory elementary education at the age of 15. According to Article 24 of the Labour Law, employment can be entered into by a person aged 15 years at the minimum and who complies with other conditions for work in individual jobs, which are laid down by law and/or rulebook on organisation and systematisation of posts.

- What challenges were encountered in realizing secondary education?

☐ Limited access

☐ Poor learning outcomes

☐ Issues of equity and inclusion

☒ Low readiness of primary graduates

☐ High dropout rates

☒ Low number of professionally trained teachers

☐ Poor quality programmes

☐ Other:

- Please elaborate. Brief quantitative information may be added.

☒ Low readiness of primary graduates

Some secondary schools report that students do not bring enough knowledge from primary school.

This is evidenced by the PISA results, which are not satisfactory when it comes to mathematical and language literacy.

In the secondary vocational education, the lack of teachers in the domain of vocational education of the technical profiles (electrical, mechanical engineering, IT) is observable, both in the domain of the highly educated lecturers and in the domain of realisation of practical teaching. This problem is currently not quite as serious, but there are grounds for fear that it can become a serious problem, bearing in mind that the economy is a developing one, and that the teachers' salaries are insufficiently competitive to those available in the economic sector. The problem is present in the

entire territory of the country, but it seems that it will be more difficult to solve it in the larger centres boasting the highest economic activity. Certain parts of the country (the eastern and the southern parts of Serbia) are facing the problem of depopulation, which indirectly leads to a lack of highly educated staff for individual professions and in schools. Among the general educational subjects, the lack of educated staff is the most observable for the subjects of mathematics and physics. In the general secondary education, there is an observable lack of the teachers of mathematics, physics, chemistry and German language. This problem is more pronounced in the less developed, smaller communities than in the larger cities.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☐ Higher education is free of charge
- ☐ **Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)**
- ☐ **Higher education is accessible through financial incentives and scholarships**
- ☐ **Higher education is accessible through positive or affirmative action measures**
- ☐ **Higher education is accessible through credit transfer system between states**
- ☐ **Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).**
- ☐ Other:

A student is entitled to a student credit and student scholarship, and scholarships for exceptionally talented students is separately envisaged. The Law prescribes application of more lenient criteria for exercising of these rights in cases of pupils and/or students from vulnerable social groups (the financially disadvantaged families, children without parental care, single parent families, Roma national minority, persons with disabilities, person suffering from chronic diseases, persons whose parents were gone missing or kidnapped in the territory of Kosovo and Metohia and in territories of the Republics of the former SFRY, refugees and displaced persons, returnees under the readmission agreements and deported pupils and students, etc.).

The affirmative measures' program regulate the enrolment of persons with disabilities,

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

enrolment of the members of the Roma national minority, enrolment of foreign nationals with the status of a migrant/asylum seeker.

By means of the Expert Instructions for implementation of enrolment in the first year of the study programs of the Master and Doctoral study courses at the higher education institutions founded by the Republic of Serbia, within which the enrolment of persons with disabilities, members of the Roma national minority, members of the Serbian national minority groups from the neighbouring countries, foreign nationals and foreign nationals with the status of migrants/asylum seekers has been regulated in more detail. These Expert Instructions prescribe that the enrolment through application of affirmative measures for the persons who are members of the Roma national minority and for the persons with disabilities is to be carried out in accordance with the Program of affirmative measure of enrolment of the persons with disabilities and the Guidelines for adjustments to the enrolment examination to the persons with disabilities intending to get enrolled in the study courses by application of affirmative measure for persons with disabilities, and/or for persons stating the need for additional adjustments. It has been envisaged, in respect of the enrolment of the members of Serbian national minority from the neighbouring countries, that that category of candidates can be enrolled at the first year of a study course under the same conditions as the nationals of the Republic of Serbia, including the right to enrolment at a study course in the status of a student financed from the national budget. Article 97 of the Law on Higher Education prescribes that the foreign nationals can be enrolled at the accredited study programs organised by the higher education institutions under the same conditions as the nationals of the Republic of Serbia in respect of their previous education. In addition to that, it is prescribed by the Expert Instructions that the enrolment of the foreign nationals with the status of a migrant or an asylum seeker at a study course shall be carried out under the same conditions that are applicable to the nationals of the Republic of Serbia.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

- The Law on Higher Education

- The Expert Instructions for the implementation of enrolment in the first year of the study programs of the basic and integrated study courses at the institutions of higher education founded by the Republic of Serbia

- The Expert Instructions for the implementation of enrolment in the first year of the study programs of the Master and Doctoral study courses at the institutions of higher education founded by the Republic of Serbia

- What challenges were encountered in realizing higher education?

- o Limited access
- o Issues of equity and inclusion
- o Poor quality programmes
- o Poor learning outcomes
- o Other:
- o Low number of professionally trained professors
- o Insufficient mechanisms to ensure smooth transition from secondary to tertiary

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- Please elaborate. Brief quantitative information may be added.

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2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

o Provision of education for persons who have not received or completed the whole period of their primary education

o Provision of literacy programmes

o Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)

o Provision of free of charge learning opportunities

o Provision of professional training including reskilling and upskilling programmes

o Recognition, validation and certification of non-formal and informal learning

o Provision of free of charge career guidance and counselling

o Lifelong learning entitlements including learning accounts, vouchers, etc.

o Other:

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- Please elaborate further on the measures taken:

Basic education for adults is free of charge as it is for primary education in the Republic of Serbia, overall. In this year 5581 adults will attend program of elementary education (functional basic education of adults) in 63 elementary schools. Also, 309 trainees in the Penitentiary Institutions and Correctional Institutions are included in the functional basic education of adults program. When it comes to adult secondary education, which is also free for those who participate for the first time, as continuation of education, this year in secondary schools we have 225 adults who enrolled in first grade in 46 secondary schools. Adult participants in secondary

education are always part-time students, and at the moment about 1000 such participants are participating in 105 secondary schools in the Republic of Serbia. Approved number for enrolment of adults in retraining programs this year is 11.428; for additional qualification programs it is 7.448; and for specialization programs 3.527. Accordingly, this year, it is planned to implement these programs for a total of 22.403 participants.

When it comes to non-formal education of adults in schools, we have planned the implementation of 41 programs, while other organizations plan to implement 393 training programs. Around 13.000 participants will be included, this year.

During the previous year, the implementation of the RPL (recognition of previous learning) procedure continued with the support of the German Organization for International Cooperation (GIZ) within the DECIDE project, and six secondary vocational schools are included so far in the implementation of the RPL procedure.

With the strategy of development of education until 2030 in the Republic of Serbia, career guidance and counselling is recognized as an important system that must be equally accessible to both students and adults throughout their education. Publicly recognized organizers of adult education activities can be accredited for the implementation of career guidance and counselling, as well as for the implementation of the recognition of previous learning.

- What challenges were encountered in realizing adult learning and education?

- | | |
|--|---|
| <ul style="list-style-type: none">o Limited accesso Issues of equity and inclusiono Poor quality programmeso Other: | <ul style="list-style-type: none">o Limited fundingo Poor learning outcomeso Low number of professionally trained educators |
|--|---|

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

☐ State monitoring and inspections

☐ **Health and sanitation**

☐ **Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))**

☐ **Infrastructure**

☐ **Curriculum**

☐ **Student-teacher ratio**

☐ **School fees (if relevant)**

☐ **Other**

Article 14 of the Law on Higher Education prescribes that for the purpose of performing the accreditation tasks, the tasks of quality verification of the higher education institutions and units within these institutions, study programs' valuation and quality assurance in higher education, the Government shall establish the National Accreditation Body.

In addition to that, Article 10 of the Law on Higher Education prescribes that in order to ensure development and quality improvement of the higher education, the Government shall establish the National Council for higher education which shall, in accordance with the competences prescribed in Article 12 of the same Law, at the proposal of the National Accreditation Body, it shall determine the standards and the procedure for self-evaluation and quality assessment of the higher education institutions, the standards and the procedure for external quality checks of the higher education institutions and the procedure for the initial accreditation, the standards and the procedure for accreditation of the higher education institutions, as well as the standards and the procedure for accreditation for the study programs.

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

- What challenges were encountered in realizing quality education?

o Non-supportive or inadequate learning environments

o Violence in schools

o Cost of education

o Conflicts or crises

o Other:

o Low quality educational infrastructure and materials

o Inadequate parental support to education

o Long distances to schools

- According to data of the Statistical Office of the Republic of Serbia, the existing demographic trend of the reduction of population number in the Republic of Serbia is reflected on the lack of staff for realisation

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☐ Teacher training is provided without discrimination.
- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☐ Initial training and continuous professional development are provided.
- ☐ **Minimum standards and qualifications required for the teaching profession.**
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☐ **Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.**
- ☐ **Establishment of performance monitoring systems.**
- ☐ **Measures taken to increase women in leadership positions in education.**
- ☐ Other:

Article 110 of the Law on Higher Education prescribes that the National Council for Higher Education shall determine the minimum conditions for election to the titles of university teachers and the minimum conditions for election to the titles of academies of vocational studies, at the proposal of the Conference of Universities and/or Conference of Academies and Colleges.

- Please elaborate on each of the measures taken:

- What challenges were encountered in the education personnel?

- | | |
|--|---|
| ☐ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☐ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

- There is a lack of staff in individual fields.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

o Curriculum includes human rights education.

o Educational and/or extracurricular activities are organized on human rights education.

o Other:

/

- Please elaborate on each of the measures taken:

Additional professional training of the staff members in the educational system and education on/for human rights

In addition to the continuous improvement the legal regulations in the field of protection from violence and discrimination in the system of education and upbringing, the Ministry of Education is dedicating intensive efforts to the improvement of competences of the staff working in educational institutions for efficient acting in cases of discriminatory behaviour with the aim of providing timely reactions and mitigating the negative consequences. The Law on Fundamentals of the System of Education and Upbringing prescribes the additional professional training and professional development of teachers, preschool teachers and expert assistants (Article 55). In addition to that, the field of additional professional training is regulated by the Rulebook on permanent professional training and advancement to the titles of teacher, preschool teacher and expert associates (Official Gazette of the RS, number 109/2021). The priority fields for the period of three years, the forms, programs and the method of additional professional training, acquiring of knowledge and the form of certificate of completed program are prescribed by the minister of education. Among the competences which are prescribed for additional professional training and professional development of teachers, preschool teachers and expert associates are the K4 competences related to the competences for communication and cooperation. Among the priority fields is the **P4** field, which includes: *Strengthening the upbringing role of the educational institutions through development of programs for the prevention of violence, discrimination, abuse and neglect.* Within their additional professional training, teachers and expert associates are obliged to attend the training courses focusing on

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Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

prevention of and protection from discrimination, prevention of and protection from violence, abuse and neglect, constructive conflict resolution, on the topic of non-violent communication, application of the Reference Framework for Democratic Culture of the CoE, on the topic of tolerance development, identification of stereotypes and prejudice and on prevention of hate speech. The Catalogue of Programs of Permanent Professional Training for Teachers, Preschool Teachers and Expert Associates for the School Years of 2022/2023, 2023/2024 and 2024/2025, at <https://zuov-katalog.rs/>, includes seven accredited programs on the topic of interculturality, five programs on the topic of gender equality, and the topic of protection from discrimination is represented by 20 programs. In the period 2022-2024, training courses dealing with the topic of protection from discrimination were attended by 1,000 staff members in the educational system, the training courses on the topic of interculturality were attended by 200 participants, and the topic of gender equality attracted 100 participants. It should be particularly noted here that there are 5 accredited training courses on the topics specifically dealing with support to pupils/students of the Roma nationality in education and those that are dedicated to improving the staff members' competences in education against racism and discrimination on the List of Training Courses of Public Interest. In the course of 2023 and 2024, five training courses were realized with the total of 220 participants. Bearing in mind that dropping out of the educational system is a significant obstacle during schooling, specifically for the pupils/students of the Roma nationality, the Ministry of Education established a system for early identification and reaction with the aim of preventing dropping out of school, and instructions were created for preventing early leaving of school. In the course of 2023, 19 training courses were organized for 482 participants from 47 schools, which were entitled "Training for Planning, Implementation and Monitoring of Measures Aimed at Preventing Student Dropping Out", which was accredited as a training program of public interest, and the realization of which was financed from the budget of the Ministry of Education. So far, the total of 2,580 staff members from 291 primary and secondary schools have attended this program. Education on human rights and for human rights is an integral part of the system of education and upbringing, both in the legislative sense, and through disciplinary and interdisciplinary competences, outcomes and additional professional training of the staff members in the educational system. All the teachers are obliged to link the outcomes and contents of their respective subjects in such a manner as to encourage development of interdisciplinary competences among pupils/students, such as the such as the *Responsible Participation in a Democratic Society*. Through the strengthening of competences for democratic culture in schools, children and pupils/students, and their parents as well, are encouraged to take an active part in the society, development of the concept of rights and responsibilities. A particularly important segment is the development of critical thinking among the students. Thus, the measures aimed at preventing the discriminatory behaviours are an important part of the efforts to achieve quality and accessible education for all. Respecting the democratic procedures, responsible, humane and tolerant behaviour in society, sensitivity to social injustice, cooperation and team work are some of the outcomes which are connected to human rights, and which are included in the teaching and learning programs. Since 2022, the Ministry of Education has established a network of counsellors who are external associates for democratic culture in schools, and 20 counsellors have been appointed by the Ministry (the staff members in schools in the territories of all the school administrations) who are financed by the Ministry of Education, and who are providing support to all the schools and informing them of the methods for implementation of competences for democratic culture (CDC). On the level of a school year, at least 1,200 teachers and expert associates improve and promote their knowledge and skills. Continuous efforts are dedicated to strengthening staff members' competences for inclusive education, and in the course of 2023 only, 8,300 staff members in the educational system were covered by different training programs.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

o Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:

In the system of higher education in the Republic of Serbia, the higher education institutions
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⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

founded by the Republic of Serbia and the higher education institutions which are privately owned and/or the higher education institutions which are not founded by the Republic of Serbia exist and have equal status.

o Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

o Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

Political, political parties' or religious organisation and activities are not permitted in the higher education institutions.

o Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

☐ **Registration**

☐ **State monitoring and inspections**

☐ **Qualifications of teachers**

☐ **Health and sanitation**

☐ **Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))**

☐ **Infrastructure**

☐ **Curriculum**

☐ **Student-teacher ratio**

☐ **School fees**

☐ **School closures**

☐ **Other**

[- Please elaborate:](#)

[- What challenges were encountered in non-state education provision?](#)

o Low quality educational infrastructure and materials

o Low number of professionally trained teachers

o Issues in terms of equity and inclusion

o Weak government regulatory and monitoring capacity

o High student – teacher ratio

o Other:

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

Digital Education

Digital education is a term that refers to two different but complementary areas of educational policy - one includes measures aimed at the **digital competence of teachers and students**, while the other includes the **pedagogical application of digital technologies** in order to improve the quality of teaching and learning.

The approach to developing digital education is comprehensive, aligning with the priorities and objectives set forth in both Serbia's Strategy for Education Development by 2030 and the European Commission's Action Plan for Digital Education 2021-2027.

Key pillars of long-term development, among other measures, include:

- Strengthening IT infrastructure.
- Establishing an Education Management Information System for better monitoring and management.
- Increasing the number of schools with digital segments in their School Development Plans.
- Enabling more schools to offer high-quality blended teaching.
- Enhancing students' and teachers digital competencies.

Digital education has the potential to improve quality of teaching and learning, particularly if it is focused on the use of the relevant Learning Management System

(LMS) and blended learning strategies, by offering personalized, flexible, and engaging experiences.

Unlike Emergency Remote Education, which is a temporary solution, blended learning aims to enhance everyday teaching and learning through consistent online support, becoming an integral part of traditional classroom instruction.

Additionally, the use of Artificial Intelligence (AI) in education aims to enhance personalized learning, streamline administrative tasks, and improve educational outcomes, while also rigorously examining its potential to ensure both effective and ethical implementation.

Digital School

Schools are strongly advised to conduct a **SELFIE** self-assessment every two years, discuss the results to identify successful practices and areas needing improvement, explore ways to apply digital technologies to enhance teaching and learning, define the **Digital component of their School Development Plan**, and continuously monitor and adapt to technological changes.

Since 2017, **EU Commission's SELFIE tool** for self-assessing schools' digital capacities has been used in the Republic of Serbia. Currently, 80% of primary and secondary schools have done Selfie at least once and are aware of their digital potential.

Digital Competences of Students

The Law on Foundations of the Education System in Serbia outlines formal expectations for developing digital competences of students, emphasizing a comprehensive approach to media, information, and digital literacy. Media Literacy and Digital Competency are identified as key interdisciplinary competences, meant to be developed across all subjects through dynamic teaching methods. The law aims to shift focus from mere declarative knowledge to practical skills and attitudes that enable students to navigate complex social situations. Additionally, ICT skills, computational thinking, and information literacy are fostered through subjects like Digital World and Computer Science, as well as through project-based learning integrated into all curricula.

Digital World is a mandatory school subject within the first cycle of primary education, involving pupils aged 7-10. Implementation started from the school year 2020/21. As stated in the curriculum, the overall goal of teaching and learning in Digital World is to develop students' digital competences in order to enable them to safely and correctly use digital devices for learning, communication, cooperation and the development of algorithmic thinking.

Digital World curricula has been developed for the first, second, third and fourth grade of the primary education. The subject has 36 school hours per year and is structured around three teaching areas: digital society, safe use of digital devices and computational thinking.

Computer Science is a mandatory subject in Serbia's primary and secondary education. Introduced in 2017 for students aged 11-14, the primary curriculum focuses on ICT skills, information literacy, and computational thinking, with an emphasis on programming. Students start with visual programming languages like Scratch in fifth grade and progress to textual languages like Python in sixth grade, with one hour of instruction per week. In secondary education (ages 15-19), the curriculum deepens knowledge from primary school, varying in duration and intensity based on the educational track. For example, in grammar schools, Computer Science aims to develop digital literacy, critical thinking, and responsible ICT use, with two hours of instruction per week.

Digital Competences of Teachers

In response to rapid technological advancements, continuous support is provided to teachers for the modern pedagogical use of technology as part of their professional development. The *Digital Competencies Framework – A Teacher for the Digital Age 2023* has been published, along with a draft self-assessment tool. Additionally, an analysis of the available training programs for developing digital competencies has been completed.

Online and Blended Learning

Schools in Serbia have the flexibility to choose their digital platforms for blended learning in primary and secondary education. The Ministry of Education recommends using Moodle, an open-source LMS, and provides support for its implementation. A comprehensive handbook is available to help teachers use Moodle effectively, particularly for creating engaging digital learning environments. Additionally, the national platform "Moja škola" is widely used by over a million students and teachers, offering various digital resources. Schools are required to use the Es-dnevnik platform for student assessment. The Ministry also encourages the use of Open Educational Resources (OERs) to enhance teaching and learning.

- o Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)
- o Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
- o Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.
- o Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

- o Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education
- o Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- o A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|---|--|
| <ul style="list-style-type: none"> o Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways o Lack of equity and inclusion in digital learning solutions o inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks o Other: | <ul style="list-style-type: none"> o Limited access to internet and/or electricity o Limited access to hardware (devices, chargers, etc.) o Difficulty in regulating the use of digital education solutions o Difficulty in sustainably financing digital education solutions at national scale o Lack of digital skills development for meaningful use of digital technology in teaching practice o Disjointed or fragmented solutions that are not centrally systematized or regulated |
|---|--|

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

o Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

o Monitoring results are made public. [Please provide the link:](#)

o Monitoring processes are participatory, inclusive and regular.

o Sector-wide and multisector approach is adopted to education governance.

o Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

o The decision-making process for the allocation of resources to education is transparent.

o Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

o There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- [Please elaborate on each of the measures taken:](#)

- [What challenges were encountered in terms of governance?](#)

o Budgetary constraints

o Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels

o Poor dialogue with teachers' trade unions

o Other:

o Absence of supportive/ inconsistent/obsolete legal and policy environment

o Lack or weakness of monitoring systems – including the lack of reliable data

- [Please elaborate. Brief quantitative information may be added.](#)

III. [Methods used to draw the attention of the various authorities in the country to the instruments](#)

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

o Translation of the Convention/Recommendation into the national and possibly local languages

o Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources

o Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

o Other:

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